



Crown
Commercial
Service

Core Terms

1. Definitions used in the contract

Interpret this Contract using Joint Schedule 1 (Definitions).

2. How the contract works

- 2.1 The Supplier is eligible for the award of Call-Off Contracts during the Framework Contract Period.
- 2.2 CCS does not guarantee the Supplier any exclusivity, quantity or value of work under the Framework Contract.
- 2.3 CCS has paid one penny to the Supplier legally to form the Framework Contract. The Supplier acknowledges this payment.
- 2.4 If the Buyer decides to buy Deliverables under the Framework Contract it must use Framework Schedule 7 (Call-Off Award Procedure) and must state its requirements using Framework Schedule 6 (Order Form Template and Call-Off Schedules). If allowed by the Regulations, the Buyer can:
- (a) make changes to Framework Schedule 6 (Order Form Template and Call-Off Schedules);
 - (b) create new Call-Off Schedules;
 - (c) exclude optional template Call-Off Schedules; and/or
 - (d) use Special Terms in the Order Form to add or change terms.
- 2.5 Each Call-Off Contract:
- (a) is a separate Contract from the Framework Contract;
 - (b) is between a Supplier and a Buyer;
 - (c) includes Core Terms, Schedules and any other changes or items in the completed Order Form; and
 - (d) survives the termination of the Framework Contract.
- 2.6 Where the Supplier is approached by any Other Contracting Authority requesting Deliverables or substantially similar goods or services, the Supplier must tell them about this Framework Contract before accepting their order.
- 2.7 The Supplier acknowledges it has all the information required to perform its obligations under each Contract before entering into a Contract. When information is provided by a Relevant Authority no warranty of its accuracy is given to the Supplier.
- 2.8 The Supplier will not be excused from any obligation, or be entitled to additional Costs or Charges because it failed to either:
- (a) verify the accuracy of the Due Diligence Information; or
 - (b) properly perform its own adequate checks.
- 2.9 CCS and the Buyer will not be liable for errors, omissions or misrepresentation of any information.

- 2.10 The Supplier warrants and represents that all statements made and documents submitted as part of the procurement of Deliverables are and remain true and accurate.

3. What needs to be delivered

3.1 All deliverables

- 3.1.1 The Supplier must provide Deliverables:

- (a) that comply with the Specification, the Framework Tender Response and, in relation to a Call-Off Contract, the Call-Off Tender (if there is one);
- (b) to a professional standard;
- (c) using reasonable skill and care;
- (d) using Good Industry Practice;
- (e) using its own policies, processes and internal quality control measures as long as they do not conflict with the Contract;
- (f) on the dates agreed; and
- (g) that comply with Law.

- 3.1.2 The Supplier must provide Deliverables with a warranty of at least 90 days from Delivery against all obvious defects.

3.2 Goods clauses

- 3.2.1 All Goods delivered must be new, or as new if recycled, unused and of recent origin.
- 3.2.2 All manufacturer warranties covering the Goods must be assignable to the Buyer on request and for free.
- 3.2.3 The Supplier transfers ownership of the Goods on Delivery or payment for those Goods, whichever is earlier.
- 3.2.4 Risk in the Goods transfers to the Buyer on Delivery of the Goods, but remains with the Supplier if the Buyer notices damage following Delivery and lets the Supplier know within 3 Working Days of Delivery.
- 3.2.5 The Supplier warrants that it has full and unrestricted ownership of the Goods at the time of transfer of ownership.
- 3.2.6 The Supplier must deliver the Goods on the date and to the specified location during the Buyer's working hours.
- 3.2.7 The Supplier must provide sufficient packaging for the Goods to reach the point of Delivery safely and undamaged.
- 3.2.8 All deliveries must have a delivery note attached that specifies the order number, type and quantity of Goods.
- 3.2.9 The Supplier must provide all tools, information and instructions the Buyer needs to make use of the

Goods.

- 3.2.10 The Supplier must indemnify the Buyer against the costs of any Recall of the Goods and give notice of actual or anticipated action about the Recall of the Goods.
- 3.2.11 The Buyer can cancel any order or part order of Goods which has not been Delivered. If the Buyer gives less than 14 days notice then it will pay the Supplier's reasonable and proven costs already incurred on the cancelled order as long as the Supplier takes all reasonable steps to minimise these costs.
- 3.2.12 The Supplier must at its own cost repair, replace, refund or substitute (at the Buyer's option and request) any Goods that the Buyer rejects because they do not conform with Clause 3. If the Supplier does not do this it will pay the Buyer's costs including repair or re-supply by a third party.

3.3 Services clauses

- 3.3.1 Late Delivery of the Services will be a Default of a Call-Off Contract.
- 3.3.2 The Supplier must co-operate with the Buyer and third party suppliers on all aspects connected with the Delivery of the Services and ensure that Supplier Staff comply with any reasonable instructions.
- 3.3.3 The Supplier must at its own risk and expense provide all Supplier Equipment required to Deliver the Services.
- 3.3.4 The Supplier must allocate sufficient resources and appropriate expertise to each Contract.
- 3.3.5 The Supplier must take all reasonable care to ensure performance does not disrupt the Buyer's operations, employees or other contractors.
- 3.3.6 The Supplier must ensure all Services, and anything used to Deliver the Services, are of good quality and free from defects.
- 3.3.7 The Buyer is entitled to withhold payment for partially or undelivered Services, but doing so does not stop it from using its other rights under the Contract.

4. Pricing and payments

- 4.1 In exchange for the Deliverables, the Supplier must invoice the Buyer for the Charges in the Order Form.
- 4.2 CCS must invoice the Supplier for the Management Charge and the Supplier must pay it using the process in Framework Schedule 5 (Management Charges and Information).
- 4.3 All Charges and the Management Charge:
 - (a) exclude VAT, which is payable on provision of a valid VAT invoice; and
 - (b) include all costs connected with the Supply of Deliverables.
- 4.4 The Buyer must pay the Supplier the Charges within 30 days of receipt by the Buyer of a valid,

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undisputed invoice, in cleared funds using the payment method and details stated in the Order Form.

4.5 A Supplier invoice is only valid if it:

- (a) includes all appropriate references including the Contract reference number and other details reasonably requested by the Buyer;
- (b) includes a detailed breakdown of Delivered Deliverables and Milestone(s) (if any); and
- (c) does not include any Management Charge (the Supplier must not charge the Buyer in any way for the Management Charge).

4.6 The Buyer must accept and process for payment an undisputed Electronic Invoice received from the Supplier.

4.7 The Buyer may retain or set-off payment of any amount owed to it by the Supplier if notice and reasons are provided.

4.8 The Supplier must ensure that all Subcontractors are paid, in full, within 30 days of receipt of a valid, undisputed invoice. If this does not happen, CCS or the Buyer can publish the details of the late payment or non-payment.

4.9 If CCS or the Buyer can get more favourable commercial terms for the supply at cost of any materials, goods or services used by the Supplier to provide the Deliverables, then CCS or the Buyer may require the Supplier to replace its existing commercial terms with the more favourable terms offered for the relevant items.

4.10 If CCS or the Buyer uses Clause 4.9 then the Framework Prices (and where applicable, the Charges) must be reduced by an agreed amount by using the Variation Procedure.

4.11 The Supplier has no right of set-off, counterclaim, discount or abatement unless they are ordered to do so by a court.

5. The buyer's obligations to the supplier

5.1 If Supplier Non-Performance arises from an Authority Cause:

- (a) neither CCS or the Buyer can terminate a Contract under Clause 10.4.1;
- (b) the Supplier is entitled to reasonable and proven additional expenses and to relief from liability and Deduction under this Contract;
- (c) the Supplier is entitled to additional time needed to make the Delivery; and
- (d) the Supplier cannot suspend the ongoing supply of Deliverables.

5.2 Clause 5.1 only applies if the Supplier:

- (a) gives notice to the Party responsible for the Authority Cause within 10 Working Days of becoming aware;
- (b) demonstrates that the Supplier Non-Performance would not have occurred but for the Authority

Cause; and

(c) mitigated the impact of the Authority Cause.

6. Record keeping and reporting

- 6.1 The Supplier must attend Progress Meetings with the Buyer and provide Progress Reports when specified in the Order Form.
- 6.2 The Supplier must keep and maintain full and accurate records and accounts on everything to do with the Contract:
- (a) during the Contract Period;
 - (b) for 7 years after the End Date; and
 - (c) in accordance with UK GDPR, including but not limited to the records and accounts stated in the definition of Audit in Joint Schedule 1.
- 6.3 The Relevant Authority or an Auditor can Audit the Supplier.
- 6.4 During an Audit, the Supplier must:
- (a) allow the Relevant Authority or any Auditor access to their premises to verify all contract accounts and records of everything to do with the Contract and provide copies for an Audit; and
 - (b) provide information to the Relevant Authority or to the Auditor and reasonable co-operation at their request.
- 6.5 Where the Audit of the Supplier is carried out by an Auditor, the Auditor shall be entitled to share any information obtained during the Audit with the Relevant Authority.
- 6.6 If the Supplier is not providing any of the Deliverables, or is unable to provide them, it must immediately:
- (a) tell the Relevant Authority and give reasons;
 - (b) propose corrective action; and
 - (c) provide a deadline for completing the corrective action.
- 6.7 The Supplier must provide CCS with a Self Audit Certificate supported by an audit report at the end of each Contract Year. The report must contain:
- (a) the methodology of the review;
 - (b) the sampling techniques applied;
 - (c) details of any issues; and
 - (d) any remedial action taken.
- 6.8 The Self Audit Certificate must be completed and signed by an auditor or senior member of the Supplier's management team that is qualified in either a relevant audit or financial discipline.

7. Supplier staff

- 7.1 The Supplier Staff involved in the performance of each Contract must:
- (a) be appropriately trained and qualified;
 - (b) be vetted using Good Industry Practice and the Security Policy; and
 - (c) comply with all conduct requirements when on the Buyer's Premises.
- 7.2 Where a Buyer decides one of the Supplier's Staff is not suitable to work on a contract, the Supplier must replace them with a suitably qualified alternative.
- 7.3 If requested, the Supplier must replace any person whose acts or omissions have caused the Supplier to breach Clause 27.
- 7.4 The Supplier must provide a list of Supplier Staff needing to access the Buyer's Premises and say why access is required.
- 7.5 The Supplier indemnifies CCS and the Buyer against all claims brought by any person employed by the Supplier caused by an act or omission of the Supplier or any Supplier Staff.

8. Rights and protection

- 8.1 The Supplier warrants and represents that:
- (a) it has full capacity and authority to enter into and to perform each Contract;
 - (b) each Contract is executed by its authorised representative;
 - (c) it is a legally valid and existing organisation incorporated in the place it was formed;
 - (d) there are no known legal or regulatory actions or investigations before any court, administrative body or arbitration tribunal pending or threatened against it or its Affiliates that might affect its ability to perform each Contract;
 - (e) it maintains all necessary rights, authorisations, licences and consents to perform its obligations under each Contract;
 - (f) it does not have any contractual obligations which are likely to have a material adverse effect on its ability to perform each Contract;
 - (g) it is not impacted by an Insolvency Event; and
 - (h) it will comply with each Call-Off Contract.
- 8.2 The warranties and representations in Clauses 2.10 and 8.1 are repeated each time the Supplier provides Deliverables under the Contract.
- 8.3 The Supplier indemnifies both CCS and every Buyer against each of the following:
- (a) wilful misconduct of the Supplier, Subcontractor and Supplier Staff that impacts the Contract; and
 - (b) non-payment by the Supplier of any Tax or National Insurance.

- 8.4 All claims indemnified under this Contract must use Clause 26.
- 8.5 The description of any provision of this Contract as a warranty does not prevent CCS or a Buyer from exercising any termination right that it may have for breach of that clause by the Supplier.
- 8.6 If the Supplier becomes aware of a representation or warranty that becomes untrue or misleading, it must immediately notify CCS and every Buyer.
- 8.7 All third party warranties and indemnities covering the Deliverables must be assigned for the Buyer's benefit by the Supplier.

9. Intellectual Property Rights (IPRs)

- 9.1 Each Party keeps ownership of its own Existing IPRs. The Supplier gives the Buyer a non-exclusive, perpetual, royalty-free, irrevocable, transferable worldwide licence to use, change and sub-license the Supplier's Existing IPR to enable it to both:
- (a) receive and use the Deliverables; and
 - (b) make use of the deliverables provided by a Replacement Supplier.
- 9.2 Any New IPR created under a Contract is owned by the Buyer. The Buyer gives the Supplier a licence to use any Existing IPRs and New IPRs for the purpose of fulfilling its obligations during the Contract Period.
- 9.3 Where a Party acquires ownership of IPRs incorrectly under this Contract it must do everything reasonably necessary to complete a transfer assigning them in writing to the other Party on request and at its own cost.
- 9.4 Neither Party has the right to use the other Party's IPRs, including any use of the other Party's names, logos or trademarks, except as provided in Clause 9 or otherwise agreed in writing.
- 9.5 If there is an IPR Claim, the Supplier indemnifies CCS and each Buyer against all losses, damages, costs or expenses (including professional fees and fines) incurred as a result.
- 9.6 If an IPR Claim is made or anticipated the Supplier must at its own expense and the Buyer's sole option, either:
- (a) obtain for CCS and the Buyer the rights in Clause 9.1 and 9.2 without infringing any third party IPR; or
 - (b) replace or modify the relevant item with substitutes that do not infringe IPR without adversely affecting the functionality or performance of the Deliverables.
- 9.7 In spite of any other provisions of a Contract and for the avoidance of doubt, award of a Contract by the Buyer and placement of any contract task under it does not constitute an authorisation by the Crown under Sections 55 and 56 of the Patents Act 1977 or Section 12 of the Registered Designs Act 1949. The Supplier acknowledges that any authorisation by the Buyer under its statutory powers must be expressly provided in writing, with reference to the acts authorised and the specific IPR involved.

10. Ending the contract or any subcontract

10.1 Contract Period

- 10.1.1 The Contract takes effect on the Start Date and ends on the End Date or earlier if required by Law.
- 10.1.2 The Relevant Authority can extend the Contract for the Extension Period by giving the Supplier no less than 3 Months' written notice before the Contract expires.

10.2 Ending the contract without a reason

- 10.2.1 CCS has the right to terminate the Framework Contract at any time without reason by giving the Supplier at least 30 days' notice.
- 10.2.2 Each Buyer has the right to terminate their Call-Off Contract at any time without reason by giving the Supplier not less than 90 days' written notice.

10.3 Rectification plan process

- 10.3.1 If there is a Default, the Relevant Authority may, without limiting its other rights, request that the Supplier provide a Rectification Plan, within 10 working days .
- 10.3.2 When the Relevant Authority receives a requested Rectification Plan it can either:
- (a) reject the Rectification Plan or revised Rectification Plan, giving reasons; or
 - (b) accept the Rectification Plan or revised Rectification Plan (without limiting its rights) and the Supplier must immediately start work on the actions in the Rectification Plan at its own cost, unless agreed otherwise by the Parties.
- 10.3.3 Where the Rectification Plan or revised Rectification Plan is rejected, the Relevant Authority:
- (a) must give reasonable grounds for its decision; and
 - (b) may request that the Supplier provides a revised Rectification Plan within 5 Working Days.
- 10.3.4 If the Relevant Authority rejects any Rectification Plan, including any revised Rectification Plan, the Relevant Authority does not have to request a revised Rectification Plan before exercising its right to terminate its Contract under Clause 10.4.3(a).

10.4 When CCS or the buyer can end a contract

- 10.4.1 If any of the following events happen, the Relevant Authority has the right to immediately terminate its Contract by issuing a Termination Notice to the Supplier:
- (a) there is a Supplier Insolvency Event;
 - (b) there is a Default that is not corrected in line with an accepted Rectification Plan;
 - (c) the Supplier does not provide a Rectification Plan within 10 days of the request;
 - (d) there is any material Default of the Contract;
 - (e) there is any material Default of any Joint Controller Agreement relating to any Contract;

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- (f) there is a Default of Clauses 2.10, 9, 14, 15, 27, 32 or Framework Schedule 9 (Cyber Essentials) (where applicable) relating to any Contract;
- (g) there is a consistent repeated failure to meet the Performance Indicators in Framework Schedule 4 (Framework Management);
- (h) there is a Change of Control of the Supplier which is not pre-approved by the Relevant Authority in writing;
- (i) if the Relevant Authority discovers that the Supplier was in one of the situations in 57 (1) or 57(2) of the Regulations at the time the Contract was awarded; or
- (j) the Supplier or its Affiliates embarrass or bring CCS or the Buyer into disrepute or diminish the public trust in them.

10.4.2 CCS may terminate the Framework Contract if a Buyer terminates a Call-Off Contract for any of the reasons listed in Clause 10.4.1.

10.4.3 If any of the following non-fault based events happen, the Relevant Authority has the right to immediately terminate its Contract by issuing a Termination Notice to the Supplier:

- (a) the Relevant Authority rejects a Rectification Plan;
- (b) there is a Variation which cannot be agreed using Clause 24 (Changing the contract) or resolved using Clause 34 (Resolving disputes);
- (c) if there is a declaration of ineffectiveness in respect of any Variation; or
- (d) the events in 73 (1) (a) of the Regulations happen.

10.5 When the supplier can end the contract

The Supplier can issue a Reminder Notice if the Buyer does not pay an undisputed invoice on time. The Supplier can terminate a Call-Off Contract if the Buyer fails to pay an undisputed invoiced sum due and worth over 10% of the annual Contract Value within 30 days of the date of the Reminder Notice.

10.6 What happens if the contract ends

10.6.1 Where a Party terminates a Contract under any of Clauses 10.2.1, 10.2.2, 10.4.1, 10.4.2, 10.4.3, 10.5 or 20.2 or a Contract expires all of the following apply:

- (a) The Buyer's payment obligations under the terminated Contract stop immediately.
- (b) Accumulated rights of the Parties are not affected.
- (c) The Supplier must promptly repay to the Buyer any and all Charges the Buyer has paid in advance in respect of Deliverables not provided by the Supplier as at the End Date.
- (d) The Supplier must promptly delete or return the Government Data except where required to retain copies by Law.
- (e) The Supplier must promptly return any of CCS or the Buyer's property provided under the terminated Contract.
- (f) The Supplier must, at no cost to CCS or the Buyer, co-operate fully in the handover and re-procurement (including to a Replacement Supplier).

10.6.2 In addition to the consequences of termination listed in Clause 10.6.1, where the Relevant Authority

terminates a Contract under Clause 10.4.1 the Supplier is also responsible for the Relevant Authority's reasonable costs of procuring Replacement Deliverables for the rest of the Contract Period.

10.6.3 In addition to the consequences of termination listed in Clause 10.6.1, if either the Relevant Authority terminates a Contract under Clause 10.2.1 or 10.2.2 or a Supplier terminates a Call-Off Contract under Clause 10.5:

- (a) the Buyer must promptly pay all outstanding Charges incurred to the Supplier; and
- (b) the Buyer must pay the Supplier reasonable committed and unavoidable Losses as long as the Supplier provides a fully itemised and costed schedule with evidence - the maximum value of this payment is limited to the total sum payable to the Supplier if the Contract had not been terminated.

10.6.4 In addition to the consequences of termination listed in Clause 10.6.1, where a Party terminates under Clause 20.2 each Party must cover its own Losses.

10.6.5 The following Clauses survive the termination or expiry of each Contract: 3.2.10, 4.2, 6, 7.5, 9, 11, 12.2, 14, 15, 16, 17, 18, 31.3, 34, 35 and any Clauses and Schedules which are expressly or by implication intended to continue.

10.7 Partially ending and suspending the contract

10.7.1 Where CCS has the right to terminate the Framework Contract it can suspend the Supplier's ability to accept Orders (for any period) and the Supplier cannot enter into any new Call-Off Contracts during this period. If this happens, the Supplier must still meet its obligations under any existing Call-Off Contracts that have already been signed.

10.7.2 Where CCS has the right to terminate a Framework Contract it is entitled to terminate all or part of it.

10.7.3 Where the Buyer has the right to terminate a Call-Off Contract it can terminate or suspend (for any period), all or part of it. If the Buyer suspends a Contract it can provide the Deliverables itself or buy them from a third party.

10.7.4 The Relevant Authority can only partially terminate or suspend a Contract if the remaining parts of that Contract can still be used to effectively deliver the intended purpose.

10.7.5 The Parties must agree any necessary Variation required by Clause 10.7 using the Variation Procedure, but the Supplier may not either:

- (a) reject the Variation; or
- (b) increase the Charges, except where the right to partial termination is under Clause 10.2.

10.7.6 The Buyer can still use other rights available, or subsequently available to it if it acts on its rights under Clause 10.7.

10.8 When subcontracts can be ended

At the Buyer's request, the Supplier must terminate any Subcontracts in any of the following events:

- (a) there is a Change of Control of a Subcontractor which is not pre-approved by the Relevant Authority in writing;
- (b) the acts or omissions of the Subcontractor have caused or materially contributed to a right of termination under Clause 10.4; or
- (c) a Subcontractor or its Affiliates embarrasses or brings into disrepute or diminishes the public trust in the Relevant Authority.

11. How much you can be held responsible for

- 11.1 Each Party's total aggregate liability in each Contract Year under this Framework Contract (whether in tort, contract or otherwise) is no more than £1,000,000.
- 11.2 Each Party's total aggregate liability in each Contract Year under each Call-Off Contract (whether in tort, contract or otherwise) is no more than the greater of £5 million or 150% of the Estimated Yearly Charges unless specified in the Call-Off Order Form.
- 11.3 No Party is liable to the other for:
- (a) any indirect Losses; or
 - (b) Loss of profits, turnover, savings, business opportunities or damage to goodwill (in each case whether direct or indirect).
- 11.4 In spite of Clause 11.1 and 11.2, neither Party limits or excludes any of the following:
- (a) its liability for death or personal injury caused by its negligence, or that of its employees, agents or Subcontractors;
 - (b) its liability for bribery or fraud or fraudulent misrepresentation by it or its employees;
 - (c) any liability that cannot be excluded or limited by Law;
 - (d) its obligation to pay the required Management Charge or Default Management Charge.
- 11.5 In spite of Clauses 11.1 and 11.2, the Supplier does not limit or exclude its liability for any indemnity given under Clauses 7.5, 8.3(b), 9.5, 31.3 or Call-Off Schedule 2 (Staff Transfer) of a Contract.
- 11.6 In spite of Clauses 11.1, 11.2 but subject to Clauses 11.3 and 11.4, the Supplier's aggregate liability in each and any Contract Year under each Contract under Clause 14.8 shall in no event exceed the Data Protection Liability Cap.
- 11.7 Each Party must use all reasonable endeavours to mitigate any Loss or damage which it suffers under or in connection with each Contract, including any indemnities.
- 11.8 When calculating the Supplier's liability under Clause 11.1 or 11.2 the following items will not be taken into consideration:
- (a) Deductions; and

(b) any items specified in Clauses 11.5 or 11.6.

11.9 If more than one Supplier is party to a Contract, each Supplier Party is jointly and severally liable for their obligations under that Contract.

12. Obeying the law

12.1 The Supplier must use reasonable endeavours to comply with the provisions of Joint Schedule 5 (Corporate Social Responsibility).

12.2 To the extent that it arises as a result of a Default by the Supplier, the Supplier indemnifies the Relevant Authority against any fine or penalty incurred by the Relevant Authority pursuant to Law and any costs incurred by the Relevant Authority in defending any proceedings which result in such fine or penalty.

12.3 The Supplier must appoint a Compliance Officer who must be responsible for ensuring that the Supplier complies with Law, Clause 12.1 and Clauses 27 to 32.

13. Insurance

The Supplier must, at its own cost, obtain and maintain the Required Insurances in Joint Schedule 3 (Insurance Requirements) and any Additional Insurances in the Order Form.

14. Data protection

14.1 The Supplier must process Personal Data and ensure that Supplier Staff process Personal Data only in accordance with Joint Schedule 11 (Processing Data).

14.2 The Supplier must not remove any ownership or security notices in or relating to the Government Data.

14.3 The Supplier must make accessible back-ups of all Government Data, stored in an agreed off-site location and send the Buyer copies every 6 Months.

14.4 The Supplier must ensure that any Supplier system holding any Government Data, including back-up data, is a secure system that complies with the Security Policy and any applicable Security Management Plan.

14.5 If at any time the Supplier suspects or has reason to believe that the Government Data provided under a Contract is corrupted, lost or sufficiently degraded, then the Supplier must notify the Relevant Authority and immediately suggest remedial action.

14.6 If the Government Data is corrupted, lost or sufficiently degraded so as to be unusable the Relevant Authority may either or both:

- (a) tell the Supplier to restore or get restored Government Data as soon as practical but no later than 5 Working Days from the date that the Relevant Authority receives notice, or the Supplier finds out about the issue, whichever is earlier; and/or
- (b) restore the Government Data itself or using a third party.

14.7 The Supplier must pay each Party's reasonable costs of complying with Clause 14.6 unless CCS or the Buyer is at fault.

14.8 The Supplier:

- (a) must provide the Relevant Authority with all Government Data in an agreed open format within 10 Working Days of a written request;
- (b) must have documented processes to guarantee prompt availability of Government Data if the Supplier stops trading;
- (c) must securely destroy all Storage Media that has held Government Data at the end of life of that media using Good Industry Practice;
- (d) securely erase all Government Data and any copies it holds when asked to do so by CCS or the Buyer unless required by Law to retain it; and
- (e) indemnifies CCS and each Buyer against any and all Losses incurred if the Supplier breaches Clause 14 and any Data Protection Legislation.

15. What you must keep confidential

15.1 Each Party must:

- (a) keep all Confidential Information it receives confidential and secure;
- (b) except as expressly set out in the Contract at Clauses 15.2 to 15.4 or elsewhere in the Contract, not disclose, use or exploit the Disclosing Party's Confidential Information without the Disclosing Party's prior written consent; and
- (c) immediately notify the Disclosing Party if it suspects unauthorised access, copying, use or disclosure of the Confidential Information.

15.2 In spite of Clause 15.1, a Party may disclose Confidential Information which it receives from the Disclosing Party in any of the following instances:

- (a) where disclosure is required by applicable Law or by a court with the relevant jurisdiction if, to the extent not prohibited by Law, the Recipient Party notifies the Disclosing Party of the full circumstances, the affected Confidential Information and extent of the disclosure;
- (b) if the Recipient Party already had the information without obligation of confidentiality before it was disclosed by the Disclosing Party;
- (c) if the information was given to it by a third party without obligation of confidentiality;
- (d) if the information was in the public domain at the time of the disclosure;
- (e) if the information was independently developed without access to the Disclosing Party's Confidential Information;
- (f) on a confidential basis, to its auditors;
- (g) on a confidential basis, to its professional advisers on a need-to-know basis; or
- (h) to the Serious Fraud Office where the Recipient Party has reasonable grounds to believe that the Disclosing Party is involved in activity that may be a criminal offence under the Bribery Act 2010.

- 15.3 In spite of Clause 15.1, the Supplier may disclose Confidential Information on a confidential basis to Supplier Staff on a need-to-know basis to allow the Supplier to meet its obligations under the Contract. The Supplier Staff must enter into a direct confidentiality agreement with the Relevant Authority at its request.
- 15.4 In spite of Clause 15.1, CCS or the Buyer may disclose Confidential Information in any of the following cases:
- (a) on a confidential basis to the employees, agents, consultants and contractors of CCS or the Buyer;
 - (b) on a confidential basis to any other Central Government Body, any successor body to a Central Government Body or any company that CCS or the Buyer transfers or proposes to transfer all or any part of its business to;
 - (c) if CCS or the Buyer (acting reasonably) considers disclosure necessary or appropriate to carry out its public functions;
 - (d) where requested by Parliament; or
 - (e) under Clauses 4.7 and 16.
- 15.5 For the purposes of Clauses 15.2 to 15.4 references to disclosure on a confidential basis means disclosure under a confidentiality agreement or arrangement including terms as strict as those required in Clause 15.
- 15.6 Transparency Information is not Confidential Information.
- 15.7 The Supplier must not make any press announcement or publicise the Contracts or any part of them in any way, without the prior written consent of the Relevant Authority and must take all reasonable steps to ensure that Supplier Staff do not either.

16. When you can share information

- 16.1 The Supplier must tell the Relevant Authority within 48 hours if it receives a Request For Information.
- 16.2 Within five (5) Working Days of the Buyer's request the Supplier must give CCS and each Buyer full co-operation and information needed so the Buyer can:
- (a) publish the Transparency Information;
 - (b) comply with any Freedom of Information Act (FOIA) request; and/or
 - (c) comply with any Environmental Information Regulations (EIR) request.
- 16.3 The Relevant Authority may talk to the Supplier to help it decide whether to publish information under Clause 16. However, the extent, content and format of the disclosure is the Relevant Authority's decision in its absolute discretion.

17. Invalid parts of the contract

If any part of a Contract is prohibited by Law or judged by a court to be unlawful, void or unenforceable, it must be read as if it was removed from that Contract as much as required and rendered ineffective as far as

possible without affecting the rest of the Contract, whether it is valid or enforceable.

18. No other terms apply

The provisions incorporated into each Contract are the entire agreement between the Parties. The Contract replaces all previous statements, agreements and any course of dealings made between the Parties, whether written or oral, in relation to its subject matter. No other provisions apply.

19. Other people's rights in a contract

No third parties may use the Contracts (Rights of Third Parties) Act 1999 (CRTPA) to enforce any term of the Contract unless stated (referring to CRTPA) in the Contract. This does not affect third party rights and remedies that exist independently from CRTPA.

20. Circumstances beyond your control

20.1 Any Party affected by a Force Majeure Event is excused from performing its obligations under a Contract while the inability to perform continues, if it both:

- (a) provides a Force Majeure Notice to the other Party; and
- (b) uses all reasonable measures practical to reduce the impact of the Force Majeure Event.

20.2 Either Party can partially or fully terminate the affected Contract if the provision of the Deliverables is materially affected by a Force Majeure Event which lasts for 90 days continuously.

21. Relationships created by the contract

No Contract creates a partnership, joint venture or employment relationship. The Supplier must represent themselves accordingly and ensure others do so.

22. Giving up contract rights

A partial or full waiver or relaxation of the terms of a Contract is only valid if it is stated to be a waiver in writing to the other Party.

23. Transferring responsibilities

- 23.1 The Supplier cannot assign, novate or transfer a Contract or any part of a Contract without the Relevant Authority's written consent.
- 23.2 The Relevant Authority can assign, novate or transfer its Contract or any part of it to any Central Government Body, public or private sector body which performs the functions of the Relevant Authority.
- 23.3 When CCS or the Buyer uses its rights under Clause 23.2 the Supplier must enter into a novation agreement in the form that CCS or the Buyer specifies.
- 23.4 The Supplier can terminate a Contract novated under Clause 23.2 to a private sector body that is experiencing an Insolvency Event.

23.5 The Supplier remains responsible for all acts and omissions of the Supplier Staff as if they were its own.

23.6 If CCS or the Buyer asks the Supplier for details about Subcontractors, the Supplier must provide details of Subcontractors at all levels of the supply chain including:

- (a) their name;
- (b) the scope of their appointment; and
- (c) the duration of their appointment.

24. Changing the contract

24.1 Either Party can request a Variation which is only effective if agreed in writing and signed by both Parties.

24.2 The Supplier must provide an Impact Assessment either:

- (a) with the Variation Form, where the Supplier requests the Variation; or
- (b) within the time limits included in a Variation Form requested by CCS or the Buyer.

24.3 If the Variation cannot be agreed or resolved by the Parties, CCS or the Buyer can either:

- (a) agree that the Contract continues without the Variation; or
- (b) terminate the affected Contract, unless in the case of a Call-Off Contract, the Supplier has already provided part or all of the provision of the Deliverables, or where the Supplier can show evidence of substantial work being carried out to provide them; or
- (c) refer the Dispute to be resolved using Clause 34 (Resolving Disputes).

24.4 CCS and the Buyer are not required to accept a Variation request made by the Supplier.

24.5 If there is a General Change in Law, the Supplier must bear the risk of the change and is not entitled to ask for an increase to the Framework Prices or the Charges.

24.6 If there is a Specific Change in Law or one is likely to happen during the Contract Period the Supplier must give CCS and the Buyer notice of the likely effects of the changes as soon as reasonably practical. They must also say if they think any Variation is needed either to the Deliverables, Framework Prices or a Contract and provide evidence:

- (a) that the Supplier has kept costs as low as possible, including in Subcontractor costs; and
- (b) of how it has affected the Supplier's costs.

24.7 Any change in the Framework Prices or relief from the Supplier's obligations because of a Specific Change in Law must be implemented using Clauses 24.1 to 24.4.

24.8 For 101(5) of the Regulations, if the Court declares any Variation ineffective, the Parties agree that their

mutual rights and obligations will be regulated by the terms of the Contract as they existed immediately prior to that Variation and as if the Parties had never entered into that Variation.

25. How to communicate about the contract

- 25.1 All notices under the Contract must be in writing and are considered effective on the Working Day of delivery as long as they are delivered before 5:00pm on a Working Day. Otherwise the notice is effective on the next Working Day. An email is effective at 9:00am on the first Working Day after sending unless an error message is received.
- 25.2 Notices to CCS must be sent to the CCS Authorised Representative's address or email address in the Framework Award Form.
- 25.3 Notices to the Buyer must be sent to the Buyer Authorised Representative's address or email address in the Order Form.
- 25.4 This Clause does not apply to the service of legal proceedings or any documents in any legal action, arbitration or dispute resolution.

26. Dealing with claims

- 26.1 If a Beneficiary is notified of a Claim then it must notify the Indemnifier as soon as reasonably practical and no later than 10 Working Days.
- 26.2 At the Indemnifier's cost the Beneficiary must both:
 - (a) allow the Indemnifier to conduct all negotiations and proceedings to do with a Claim; and
 - (b) give the Indemnifier reasonable assistance with the claim if requested.
- 26.3 The Beneficiary must not make admissions about the Claim without the prior written consent of the Indemnifier which can not be unreasonably withheld or delayed.
- 26.4 The Indemnifier must consider and defend the Claim diligently using competent legal advisors and in a way that does not damage the Beneficiary's reputation.
- 26.5 The Indemnifier must not settle or compromise any Claim without the Beneficiary's prior written consent which it must not unreasonably withhold or delay.
- 26.6 Each Beneficiary must take all reasonable steps to minimise and mitigate any losses that it suffers because of the Claim.
- 26.7 If the Indemnifier pays the Beneficiary money under an indemnity and the Beneficiary later recovers money which is directly related to the Claim, the Beneficiary must immediately repay the Indemnifier the lesser of either:
 - (a) the sum recovered minus any legitimate amount spent by the Beneficiary when recovering this money; or

- (b) the amount the Indemnifier paid the Beneficiary for the Claim.

27. Preventing fraud, bribery and corruption

27.1 The Supplier must not during any Contract Period:

- (a) commit a Prohibited Act or any other criminal offence in the Regulations 57(1) and 57(2); or
- (b) do or allow anything which would cause CCS or the Buyer, including any of their employees, consultants, contractors, Subcontractors or agents to breach any of the Relevant Requirements or incur any liability under them.

27.2 The Supplier must during the Contract Period:

- (a) create, maintain and enforce adequate policies and procedures to ensure it complies with the Relevant Requirements to prevent a Prohibited Act and require its Subcontractors to do the same;
- (b) keep full records to show it has complied with its obligations under Clause 27 and give copies to CCS or the Buyer on request; and
- (c) if required by the Relevant Authority, within 20 Working Days of the Start Date of the relevant Contract, and then annually, certify in writing to the Relevant Authority, that they have complied with Clause 27, including compliance of Supplier Staff, and provide reasonable supporting evidence of this on request, including its policies and procedures.

27.3 The Supplier must immediately notify CCS and the Buyer if it becomes aware of any breach of Clauses 27.1 or 27.2 or has any reason to think that it, or any of the Supplier Staff, has either:

- (a) been investigated or prosecuted for an alleged Prohibited Act;
- (b) been debarred, suspended, proposed for suspension or debarment, or is otherwise ineligible to take part in procurement programmes or contracts because of a Prohibited Act by any government department or agency;
- (c) received a request or demand for any undue financial or other advantage of any kind related to a Contract; or
- (d) suspected that any person or Party directly or indirectly related to a Contract has committed or attempted to commit a Prohibited Act.

27.4 If the Supplier notifies CCS or the Buyer as required by Clause 27.3, the Supplier must respond promptly to their further enquiries, co-operate with any investigation and allow the Audit of any books, records and relevant documentation.

27.5 In any notice the Supplier gives under Clause 27.3 it must specify the:

- (a) Prohibited Act;
- (b) identity of the Party who it thinks has committed the Prohibited Act; and
- (c) action it has decided to take.

28. Equality, diversity and human rights

- 28.1 The Supplier must follow all applicable equality Law when they perform their obligations under the Contract, including:
- (a) protections against discrimination on the grounds of race, sex, gender reassignment, religion or belief, disability, sexual orientation, pregnancy, maternity, age or otherwise; and
 - (b) any other requirements and instructions which CCS or the Buyer reasonably imposes related to equality Law.
- 28.2 The Supplier must take all necessary steps, and inform CCS or the Buyer of the steps taken, to prevent anything that is considered to be unlawful discrimination by any court or tribunal, or the Equality and Human Rights Commission (or any successor organisation) when working on a Contract.

29. Health and safety

- 29.1 The Supplier must perform its obligations meeting the requirements of:
- (a) all applicable Law regarding health and safety; and
 - (b) the Buyer's current health and safety policy while at the Buyer's Premises, as provided to the Supplier.
- 29.2 The Supplier and the Buyer must as soon as possible notify the other of any health and safety incidents or material hazards they are aware of at the Buyer Premises that relate to the performance of a Contract.

30. Environment

- 30.1 When working on Site the Supplier must perform its obligations under the Buyer's current Environmental Policy, which the Buyer must provide.
- 30.2 The Supplier must ensure that Supplier Staff are aware of the Buyer's Environmental Policy.

31. Tax

- 31.1 The Supplier must not breach any Tax or social security obligations and must enter into a binding agreement to pay any late contributions due, including where applicable, any interest or any fines. CCS and the Buyer cannot terminate a Contract where the Supplier has not paid a minor Tax or social security contribution.
- 31.2 Where the Charges payable under a Contract with the Buyer are or are likely to exceed £5 million at any point during the relevant Contract Period, and an Occasion of Tax Non-Compliance occurs, the Supplier must notify CCS and the Buyer of it within 5 Working Days including:
- (a) the steps that the Supplier is taking to address the Occasion of Tax Non-Compliance and any mitigating factors that it considers relevant; and
 - (b) other information relating to the Occasion of Tax Non-Compliance that CCS and the Buyer may

reasonably need.

31.3 Where the Supplier or any Supplier Staff are liable to be taxed or to pay National Insurance contributions in the UK relating to payment received under a Call-Off Contract, the Supplier must both:

- (a) comply with the Income Tax (Earnings and Pensions) Act 2003 and all other statutes and regulations relating to income tax, the Social Security Contributions and Benefits Act 1992 (including IR35) and National Insurance contributions; and
- (b) indemnify the Buyer against any Income Tax, National Insurance and social security contributions and any other liability, deduction, contribution, assessment or claim arising from or made during or after the Contract Period in connection with the provision of the Deliverables by the Supplier or any of the Supplier Staff.

31.4 If any of the Supplier Staff are Workers who receive payment relating to the Deliverables, then the Supplier must ensure that its contract with the Worker contains the following requirements:

- (a) the Buyer may, at any time during the Contract Period, request that the Worker provides information which demonstrates they comply with Clause 31.3, or why those requirements do not apply, the Buyer can specify the information the Worker must provide and the deadline for responding;
- (b) the Worker's contract may be terminated at the Buyer's request if the Worker fails to provide the information requested by the Buyer within the time specified by the Buyer;
- (c) the Worker's contract may be terminated at the Buyer's request if the Worker provides information which the Buyer considers is not good enough to demonstrate how it complies with Clause 31.3 or confirms that the Worker is not complying with those requirements; and
- (d) the Buyer may supply any information they receive from the Worker to HMRC for revenue collection and management.

32. Conflict of interest

32.1 The Supplier must take action to ensure that neither the Supplier nor the Supplier Staff are placed in the position of an actual or potential Conflict of Interest.

32.2 The Supplier must promptly notify and provide details to CCS and each Buyer if a Conflict of Interest happens or is expected to happen.

32.3 CCS and each Buyer can terminate its Contract immediately by giving notice in writing to the Supplier or take any steps it thinks are necessary where there is or may be an actual or potential Conflict of Interest.

33. Reporting a breach of the contract

33.1 As soon as it is aware of it the Supplier and Supplier Staff must report to CCS or the Buyer any actual or suspected breach of:

- (a) Law;
- (b) Clause 12.1; or

(c) Clauses 27 to 32.

33.2 The Supplier must not retaliate against any of the Supplier Staff who in good faith reports a breach listed in Clause 33.1 to the Buyer or a Prescribed Person.

34. Resolving disputes

- 34.1 If there is a Dispute, the senior representatives of the Parties who have authority to settle the Dispute will, within 28 days of a written request from the other Party, meet in good faith to resolve the Dispute.
- 34.2 If the Dispute is not resolved at that meeting, the Parties can attempt to settle it by mediation using the Centre for Effective Dispute Resolution (CEDR) Model Mediation Procedure current at the time of the Dispute. If the Parties cannot agree on a mediator, the mediator will be nominated by CEDR. If either Party does not wish to use, or continue to use mediation, or mediation does not resolve the Dispute, the Dispute must be resolved using Clauses 34.3 to 34.5.
- 34.3 Unless the Relevant Authority refers the Dispute to arbitration using Clause 34.4, the Parties irrevocably agree that the courts of England and Wales have the exclusive jurisdiction to:
- (a) determine the Dispute;
 - (b) grant interim remedies; and/or
 - (c) grant any other provisional or protective relief.
- 34.4 The Supplier agrees that the Relevant Authority has the exclusive right to refer any Dispute to be finally resolved by arbitration under the London Court of International Arbitration Rules current at the time of the Dispute. There will be only one arbitrator. The seat or legal place of the arbitration will be London and the proceedings will be in English.
- 34.5 The Relevant Authority has the right to refer a Dispute to arbitration even if the Supplier has started or has attempted to start court proceedings under Clause 34.3, unless the Relevant Authority has agreed to the court proceedings or participated in them. Even if court proceedings have started, the Parties must do everything necessary to ensure that the court proceedings are stayed in favour of any arbitration proceedings if they are started under Clause 34.4.
- 34.6 The Supplier cannot suspend the performance of a Contract during any Dispute.

35. Which law applies

This Contract and any Disputes arising out of, or connected to it, are governed by English law.



Crown
Commercial
Service

Framework Award Form

RM6116 Network Services 3

This Framework Award Form creates the Framework Contract RM6116 Network Services 3. It summarises the main features of the procurement and includes CCS and the Supplier's contact details.

1.	CCS	The Minister for the Cabinet Office represented by its executive agency the Crown Commercial Service (CCS). Its offices are on: 9th Floor, The Capital, Old Hall Street, Liverpool L3 9PP.
2.	Supplier	Name: [Insert] name (registered name if registered) Address: [Insert] address registered address if registered] Registration number: [Insert] registration number if registered] SID4GOV ID: [Insert] SID4GOV ID if you have one]
3.	Framework Contract	This framework contract between CCS and the Supplier allows the Supplier to be considered for Call-off Contracts to supply the Deliverables [in Lot(s) [x, y]. You cannot deliver in any other Lot under this contract. Any references made to other Lots in this contract do not apply.] This opportunity is advertised in the Contract Notice in the Find a Tender Service reference [Insert] reference number] (FTS Contract Notice).
4.	Deliverables	[Insert] general description of the Deliverables, by Lot if relevant] See Framework Schedule 1 (Specification) for further details.
5.	Framework Start Date	[Insert] Day Month Year]
6.	Framework Expiry Date	[Insert] Day Month Year]
7.	Framework Optional Extension Period	[Insert] detail about extensions of this contract] Up to [Insert] Day Month Year]
8.	Order Procedure	• further competition • direct award See Framework Schedule 7 (Call-off Award Procedure)

9.	Framework Incorporated Terms (together these documents form the 'the Framework Contract')	The following documents are incorporated into the Framework Contract. Where numbers are missing we are not using these schedules. If the documents conflict, the following order of precedence applies: 1. This Framework Award Form 2. Any Framework Special Terms (see Section 10 'Framework Special Terms' in this Framework Award Form) 3. Joint Schedule 1 (Definitions) RM6116 4. Call-Off Schedule 17 (MOD Terms) 5. Joint Schedule 11 (Processing Data) RM6116 6. The following Schedules for RM6116 (in equal order of precedence): ○ Framework Schedule 1 (Specification) ○ Framework Schedule 3 (Framework Prices) ○ Framework Schedule 4 (Framework Management) ○ Framework Schedule 5 (Management Charges and Information) ○ Framework Schedule 6 (Order Form Template and Call-Off Schedules) including the following template Call-Off Schedules: ▪ Call-Off Schedule 1 (Transparency Reports) ▪ Call-Off Schedule 2 (Staff Transfer) ▪ Call-Off Schedule 3 (Continuous Improvement) ▪ Call-Off Schedule 4 (Call-Off Tender) ▪ Call-Off Schedule 5 (Pricing Details) ▪ Call-Off Schedule 6 (ICT Services) ▪ Call-Off Schedule 7 (Key Supplier Staff) ▪ Call-Off Schedule 8 (Business Continuity and Disaster Recovery) ▪ Call-Off Schedule 9 (Security) ▪ Call-Off Schedule 10 (Exit Management) ▪ Call-Off Schedule 11 (Installation Works) ▪ Call-Off Schedule 12 (Clustering) ▪ Call-Off Schedule 13 (Implementation Plan and Testing) ▪ Call-Off Schedule 14 (Service Levels) ▪ Call-Off Schedule 15 (Call-Off Contract Management)] ▪ Call-Off Schedule 16 (Benchmarking) ▪ Call-Off Schedule 18 (Background Checks) ▪ Call-Off Schedule 19 (Scottish Law) ▪ Call-Off Schedule 20 (Call-Off Specification) ▪ Call-Off Schedule 21 (Northern Ireland Law)

		▪ Call-Off Schedule 22 (Lease Terms) ▪ Call-Off Schedule 23 (HMRC Terms) ▪ Call-Off Schedule 24 (Supplier Furnished Terms) ○ Framework Schedule 7 (Call-Off Award Procedure) ○ Framework Schedule 8 (Self Audit Certificate) ○ Framework Schedule 9 (Cyber Essentials Scheme) ○ Joint Schedule 2 (Variation Form) ○ Joint Schedule 3 (Insurance Requirements) ○ Joint Schedule 4 (Commercially Sensitive Information) ○ Joint Schedule 6 (Key Subcontractors) ○ Joint Schedule 7 (Financial Difficulties) ○ Joint Schedule 8 (Guarantee) ○ Joint Schedule 9 (Minimum Standards of Reliability) ○ Joint Schedule 10 (Rectification Plan) ○ Joint Schedule 12 (Supply Chain Visibility) 7. CCS Core Terms (version 3.0.11) 8. Joint Schedule 5 (Corporate Social Responsibility) RM6116 9. Framework Schedule 2 (Framework Tender) RM6116 as long as any part of the Framework Tender that offers a better commercial position for CCS or Buyers (as decided by CCS) take precedence over the documents above 10. Call-Off Schedule 25 (Supplier Operational Terms)								
10.	Framework Special Terms	<table><tr><td>Special Term 1</td><td>A new Clause 2.11 shall be added to the Core Terms: “The Supplier shall operate the Catalogue in accordance with Framework Schedule 1 (Specification).”</td></tr><tr><td>Special Term 2</td><td>Clause 3.2.11 of the Core Terms shall be deleted and replaced with the following: “Not used.”</td></tr><tr><td>Special Term 3</td><td>Clause 3.2.2 of the Core Terms shall be deleted and replaced with the following: “Not used.”</td></tr><tr><td>Special Term 4</td><td>Clause 7.4 of the Core Terms shall be deleted and replaced with the following: “If requested, the Supplier will provide a list of Supplier Staff needing access to the Buyer's Premises and say</td></tr></table>	Special Term 1	A new Clause 2.11 shall be added to the Core Terms: “The Supplier shall operate the Catalogue in accordance with Framework Schedule 1 (Specification).”	Special Term 2	Clause 3.2.11 of the Core Terms shall be deleted and replaced with the following: “Not used.”	Special Term 3	Clause 3.2.2 of the Core Terms shall be deleted and replaced with the following: “Not used.”	Special Term 4	Clause 7.4 of the Core Terms shall be deleted and replaced with the following: “If requested, the Supplier will provide a list of Supplier Staff needing access to the Buyer's Premises and say
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Special Term 2	Clause 3.2.11 of the Core Terms shall be deleted and replaced with the following: “Not used.”									
Special Term 3	Clause 3.2.2 of the Core Terms shall be deleted and replaced with the following: “Not used.”									
Special Term 4	Clause 7.4 of the Core Terms shall be deleted and replaced with the following: “If requested, the Supplier will provide a list of Supplier Staff needing access to the Buyer's Premises and say									

			why access is required”
		Special Term 5	Clause 8.7 of the Core Terms shall be deleted and replaced with the following: “The Supplier shall assign to the Buyer, or if it is unable to do so, shall (to the extent it is legally able to do so) hold on trust for the sole benefit of the Buyer, those warranties and indemnities provided by third parties that are specifically associated with and particular to the Deliverables provided to the Buyer. Where any such warranties are held on trust, the Supplier shall enforce such warranties as required by the Buyer on the Buyer’s behalf in order to provide the Services and shall do so in accordance with any reasonable directions that the Buyer may notify from time to time to the Supplier.”
		Special Term 6	Core Terms Clause 11.2 – amend “£5 million” to “£1 million”
		Special Term 7	Clause 14.1 of the Core Terms shall be deleted and replaced with the following: “The Parties acknowledge that for the purposes of the Data Protection Legislation, the Relevant Authority is the Controller and the Supplier is the Processor unless otherwise specified in Joint Schedule 11. The Supplier must process Personal Data and ensure that Supplier Staff process Personal Data only in accordance with Joint Schedule 11 (Processing Data).”
		Special Term 8	Core Terms Clause 24.2 – add the following additional text at the end of the Clause : “If the Supplier needs resources other than those ordinarily used in the provision of the Service in order to complete an Impact Assessment requested by the Buyer, the Supplier must tell the Buyer before beginning the Impact Assessment. If the Buyer wants the Impact Assessment to go ahead, the Buyer shall pay any reasonable costs incurred by the Supplier in producing the Impact Assessment. To be clear, the Supplier will not be able to recover costs incurred during the Impact

			Assessment that the Buyer didn't agree before the Impact Assessment began."
		Special Term 9	Core Terms – add the following provision: "36. Telecoms Expense Management The Supplier shall provide without charge to a TEM Provider nominated by the Buyer the detailed invoice data for each Buyer in receipt of Deliverables in an Electronic Data Interchange (EDI) format at the same frequency as it is received by that Buyer, subject to the TEM Provider agreeing to enter into a direct confidentiality agreement with the Supplier on terms equivalent to the terms set out in Clause 15 (What you must keep Confidential)."
		Special Term 10	Joint Schedule 5 – Corporate Social Responsibility The application of clause 3.1.8 within Joint Schedule 5 - Corporate Social Responsibility applies only in respect of Lot 1a
		Special Term 11	Clause 10.2.2 of the Core Terms shall be deleted and replaced with the following: "Each Buyer has the right to terminate their Call-Off Contract at any time by giving the Supplier not less than the minimum period of notice specified in the Order Form or 90 days (whichever is greater)."
11.	Framework Prices	Details in Framework Schedule 3 (Framework Prices)	
12.	Insurance	Details in Annex of Joint Schedule 3 (Insurance Requirements).	
13.	Cyber Essentials Certification	Cyber Essentials Scheme Certificate (or equivalent). Suppliers must provide evidence of their CE certificate (or equivalent ISO27001) to be awarded to the framework. Details in Framework Schedule 9 (Cyber Essentials Scheme)	
14.	Management Charge	The Supplier will pay, excluding VAT, 1% Management Charge of all the Charges for the Deliverables invoiced to the Buyer under all Call-Off Contracts.	
15.	Supplier Framework Manager	[Insert] name] [Insert] job title] [Insert] email address]	

		[Insert] phone number]
16.	Supplier Authorised Representative	[Insert] name] [Insert] job title] [Insert] email address] [Insert] phone number]
17.	Supplier Compliance Officer	[Insert] name] [Insert] job title] [Insert] email address] [Insert] phone number]
18.	Supplier Data Protection Officer	[Insert] name] [Insert] job title] [Insert] email address] [Insert] phone number]
19.	Data Protection Liability Cap	£10,000,000
20.	Supplier Marketing Contact	[Insert] name] [Insert] job title] [Insert] email address] [Insert] phone number]
21.	Key Subcontractors	Key Subcontractor 1 Name (Registered name if registered) [insert] name] Registration number (if registered) [insert] number] Role of Subcontractor [insert] role] [Guidance: copy above lines as needed]

22.	CCS Authorised Representative	[Insert] name] [Insert] job title] [Insert] email address] [Insert] phone number]
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For and on behalf of the Supplier:		For and on behalf of CCS:	
Signature:		Signature:	
Name:		Name:	
Role:		Role:	
Date:		Date:	

RM6116

Network Services 3 Statement of Requirements

The Crown Commercial Service (CCS), hereby known as the Authority, is seeking to establish a multi-Supplier Framework Agreement for the supply of Network Services covered by the Lotting structure indicated below.

1. Specification

1.1. This Framework is divided into the following Lots:

- | | |
|---------|---|
| 1.1.1. | Lot 1a Inter site Connectivity (Wide Area Network) / Data Access Services |
| 1.1.2. | Lot 1b Commercial Radio capabilities |
| 1.1.3. | Lot 1c Tactical Radio systems |
| 1.1.4. | Lot 1d Critical Domain services |
| 1.1.5. | Lot 2a Intra site Connectivity (Local Area Network) / Local Connectivity Services |
| 1.1.6. | Lot 3a IoT and Smart Cities (Smart shared and connected spaces) |
| 1.1.7. | Lot 3b Communication Platform as a Service |
| 1.1.8. | Lot 4a Analogue Telephony |
| 1.1.9. | Lot 4b Digital Communication Services (Unified Communications) |
| 1.1.10. | Lot 4c Contact Centre Solutions |
| 1.1.11. | Lot 4d Inbound Telephony Services |
| 1.1.12. | Lot 4e Paging & Alerting |

This Framework Agreement provides:

- Suppliers that can provide design, build and deliver capabilities in their relevant service area(s). This means that suppliers will be able to offer customers vendor agnostic consultancy on improving the performance and security of their networks and also offer the managed services required to build fully integrated network solutions enabling cloud-based designs that offer customers flexibility and a better security posture.
- A robust performance management approach, including collection and analysis of KPI metrics and quarterly performance reviews between the

Authority, Contracting Authorities and the framework Suppliers to support maintenance and continuous improvement of performance levels throughout the framework lifetime.

- Data gathering route to allow collection of detailed management information and metrics to support ongoing trend analysis and service development.
- Transparency of Supplier service capability/offer and pricing to support informed buying decisions by Customers.
- Flexibility of call-off approach via direct award or further competition to meet customer timelines.

Call Off Requirements:

1.2. The structure of each Lot is set out in paragraph 2 below, and:

1.2.1. Each Buyer's Call-Off Contract may or may not include:

- a) the Primary Services of a Lot (as defined in paragraph 1.2.2 below); and/or
- b) the technology, equipment and solutions (as defined in paragraph 1.2.3 below); and/or
- c) the Ancillary Services (as defined paragraph 1.2.4 below).

1.2.2. Primary Services:

- a) Primary Services provide the functionality and services that are fundamental to a Lot; and are set out in paragraph 2 of this Part A;
- b) A Primary Service from a given Lot, can be employed as part of the delivery of a Primary Service in a separate Lot, but only where all of the following apply:
 - (i) the Primary Service from a given Lot is required in order to enable the delivery of the Primary Service in a separate Lot; and
 - (ii) the Primary Service from a given Lot is used exclusively for the delivery of the Primary Service in a separate Lot.
 - (iii) the Buyer has requested that the Supplier include the Primary service from a given Lot in their Tender.

c) A Primary Service from a given Lot **cannot be procured**:

- (i) as a standalone Primary Service from a separate Lot;
- (ii) as standalone technology, equipment and solutions from a separate Lot; and
- (iii) as an Ancillary Service in a separate Lot.

1.2.3. Technology, equipment and solutions:

- d) These are optional technology, equipment and solutions that may be required in the delivery of the Primary Services of a Lot; and are set out in paragraph 2 of this part A.
- e) Technology, equipment and solutions from a given Lot, can be employed as part of the delivery of a Primary Service in a separate Lot, but only where:
 - (i) the technology, equipment and solutions from a given Lot are required in order to enable the delivery of the Primary Service in a separate Lot; and
 - (ii) the technology, equipment and solutions from a given Lot is used exclusively for the delivery of the Primary Service in a separate Lot.
- f) Technology, equipment and solutions from a given Lot **cannot be procured**:
 - (i) as a standalone Primary Service from a separate Lot;
 - (ii) as standalone technology, equipment and solutions from a separate Lot; and
 - (iii) as an Ancillary Service in a separate Lot.

1.2.4. Ancillary Services:

- a) Ancillary Services are optional goods and services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and technology, equipment and solutions in a Lot.
- b) The scope of Ancillary Services in all Lots includes, but is not limited to:
 - (i) supply, installation (including any building or civil engineering works), management, help desk services, Buyer service portals,

maintenance, technical architecture, system design, project management and related professional services associated with the provision of the Services; and

(ii) migration and transition support and other related services to enable the successful implementation and performance of solutions provided under a Lot.

c) Ancillary Services may appear in more than one Lot; and

d) Ancillary Services must be in scope of the Lot under which the Call-Off Contract is awarded.

1.3. The Buyer shall select the Services it requires when making a direct award from the Catalogue; or shall specify the Services as part of its invitation to tender for a Further Competition.

1.4. Where a Supplier responds to a Buyer's Statement of Requirements with a solution comprising multiple Primary Services and/or Ancillary Services, the Supplier shall ensure that each element of its solution is clearly identified and priced in its Call-Off Tender.

1.5. Where a Supplier creates a Service Offer with a solution comprising multiple Primary Services and/or Ancillary Services, the Supplier shall ensure that each element of its solution is clearly identified in the Service Offer Price Card.

1.6. The Supplier shall ensure that where a Call-Off Tender proposal or Service Offer is dependent on multiple Primary Services and/or Ancillary Services the Buyer can readily (either through the use of application programming interfaces, open source software or otherwise) remove or adapt elements of the Deliverables such that:

1.6.1. the Buyer is able to adopt and integrate other solutions from alternative suppliers during or on expiry of the Contract Period; and

1.6.2. minimise the cost of any associated Variation.

1.7. Note that a wide variety of non-secure, OFFICIAL, PSN accredited and HSCN compliant and enhanced security requirements may transpire throughout the duration of the Framework Contract for all Lots.

- 1.8. Suppliers are expected to achieve and maintain appropriate security accreditation of the services as may be required by CCS and Buyers.
- 1.9. Where the Services are PSN Services they will comply with relevant PSN standards and processes, as described on the PSN website <https://www.gov.uk/government/groups/public-services-network> (“**PSN Standards**”).
- 1.10. Where the Services are HSCN Connectivity Services the Supplier shall comply with the HSCN obligations and processes described in the following documents on the HSCN website <https://www.digital.nhs.uk/health-social-care-network/connectivity-suppliers>
- a) HSCN Compliance Operating Model
 - b) HSCN Obligations Framework
 - c) HSCN CN-SP Service Management Requirement Addendum
 - d) CN-SP Deed
 - e) HSCN Mandatory Supplemental Terms

Telecoms Expense Management

The Supplier shall provide without charge to a TEM Provider nominated by the Contracting Authority the detailed invoice data for each Contracting Body in receipt of Services in an Electronic Data Interchange (EDI) format at the same frequency as it is received by that Contracting Body, subject to the TEM Provider agreeing to enter into a direct confidentiality agreement with the Supplier on terms equivalent to the terms set out in Clause 15 (Confidentiality) of the PSC Core terms.

2. Lot Structure

2.1. **Lot 1a: Inter site Connectivity (WAN) / Data Access Services**

2.1.1. **Lot 1a Scope of Services:**

This Lot 1a is for the provision of connectivity services, enabling Site-to-Site or Site-to-cloud interconnectivity as described in paragraphs 2.1.2 to 2.1.4.

2.1.2. **Lot 1a Primary Services:**

- a) Wide area connectivity for the provision of a managed or unmanaged point-to-point data-only connection.
- b) Wide area connectivity for the provision of a managed or unmanaged point-to-internet/cloud data-only connection.

2.1.3. **Lot 1a Technology, Equipment and Solutions:**

The scope of this Lot includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 1, including but not limited to:

- a) design, survey, build, management, support and maintenance for Lot 1 services
- b) unmanaged dark connectivity
- c) terrestrial, fibre, wireless and satellite solutions
- d) data networking equipment
- e) software-defined networking (SD WAN)
- f) Secure Access Service Edge (SASE) network architectures
- g) individual or multiple data connectivity circuits
- h) connectivity to support voice services (e.g. PSTN - public switched telephone network, and IP - internet protocol telephony)
- i) network related security and access control solutions including but not limited to provision of security equipment
- j) domain name resolution services
- k) support for classes and/or qualities of service (COS/QOS) and flexible bandwidth options
- l) closed user groups and virtual private networks
- m) Internet Service Providers (ISP) and Internet services & gateways, including;
 - internet access, transit and ISP peering solutions

- broadband routing and performance monitoring tools (including user self-test speed detection and reporting)
- home and teleworker service packages, including remote access solutions
- e-mail and website services as part of ISP service
- co-location and hosting – but only as part of ISP service
- on-line storage as part of ISP service (i.e.; not SAN - storage area network solutions or components)

2.1.4. Lot 1a Ancillary Services:

The Ancillary Services for this Lot 1a are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

2.2. Lot 1b: Commercial Radio Connectivity

2.2.1. Lot 1b Scope of Services:

This Lot 1b is for the provision of voice services over a radio communications system, as described in paragraphs 2.2.2 to 2.2.4.

2.2.2. Lot 1b Primary Services:

- a) A voice communication solution utilising UHF (Ultra High Frequency), and/or VHF (Very High Frequency) radio frequency bands.
- b) The ability to transmit and receive from a central operator console a voice communication over the allocated frequency to a hand held device, push to talk release to listen, outside of a building.

2.2.3. Lot 1b Technology, Equipment and Solutions:

The scope of this Lot includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 1b, including but not limited to:

- a) design, survey, build, management, support and maintenance for Lot 1b services
- b) mobile radio and two-way transceiver

- c) point to point and/or point to multipoint
- d) supply, installation and, maintenance
- e) secure radio and support equipment
- f) commodity and/or managed service
- g) professional mobile radio (PMR) (known in UK as private radio)
- h) compliance with any prevailing radio standards, including TETRA (Terrestrial Trunked Radio)
- i) closed user groups

2.2.4. Lot 1b Ancillary Services:

The Ancillary Services for this Lot 1b are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

2.3. Lot 1c: Tactical Radio Systems

2.3.1 Lot 1c Scope of Services:

This Lot 1c is for the provision of voice services over a radio communications system, as described in paragraphs 2.3.1 to 2.3.3.

2.3.2 Lot 1c Primary Services:

Provision of a radio solution that enables the exchange of secure[1] voice & data communications over a tactical radio communications system, utilising Line of Sight (LOS) C Band, S Band, L Band, Ultra High Frequency (UHF), Very High Frequency (VHF) and/or High Frequency (HF) radio frequency bands[2]. The ability to transmit and receive, using push to talk to a personal, manpack or platform device, using point to point and/or point to multipoint. The tactical radio system is not reliant on any fixed communications and power infrastructure[3] to operate and may need to be intrinsically safe to operate around electrically initiated munitions. The Tactical Radio Systems provided shall include but shall not be limited to:

- **Personal Radio System**, for use by a person, on foot, in various operational environments and climates (urban, rural, desert, maritime/littoral, low and high temperature).
- **Manpack Radio System**, for use by a person, carried in a bergen, for use in various operational environments and climates (urban, rural, desert, maritime/littoral, low and high temperature).

- **Platform Radio System**, for use in land/air/maritime/littoral platforms.
-

Product/Service specific definitions:

[1] At OFFICIAL and OFFICIAL SENSITIVE classifications but potentially up to SECRET for some call-off requirements.

[2] The International Telecommunications Union (ITU) designates VHF as 30 to 300 megahertz (MHz) and UHF as 300 MHz to 3 gigahertz (GHz). The Institute of Electrical and Electronics Engineers (IEEE) designates C Band as 4-8 gigahertz (GHz), S Band as 2-4 GHz and L Band as 1-2 GHz.

[3] Within a specific length of time, which will be detailed in the call-off contract(s).

2.3.3 Lot 1c Technology, Equipment and Solutions:

The scope of this Lot includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 1c, including but not limited to:

- a) Design, survey, build, management, support and maintenance for Lot 1c services.
- b) Supply of Radio System assembly.
- c) Supply of supporting ancillary equipment, including but not limited to cable assembly for interfacing to any proprietary interfaces (power, data and audio).
- d) Supply of Software/Firmware and Waveforms for use in, and configuration of, the Radio System. This includes any configuration, management and cryptographic applications, i.e. the ability to generate, load and manage cryptographic keys.
- e) Supply of any additional radio ancillary items or other components / parts which make up the Radio System.

2.3.4 Lot 1c Ancillary Services:

The Ancillary Services for this Lot 1c are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition. This may include but may not be limited to:

- a) Trials/testing to demonstrate Radio Systems performance
- b) System verification, acceptance, test and evaluation
- c) Support to electromagnetic environmental effects
- d) Support to fielding Radio Systems

- e) Support to / delivery of training
- f) Safety assurance and safety and environmental services
- g) Radio Systems security
- h) Interface control support/activities
- i) Logistics support activities
- j) Introduction to service activities
- k) Interoperability/integration activities
- l) Repair, maintenance and disposal activities
- m) In-service support activities
- n) Obsolescence management and technology horizon management activities
- o) Project management activities
- p) Engineering support activities
- q) Additional ad-hoc tasking.

2.4 Lot 1d: Critical Domain services

2.4.1 Lot 1d Scope of Services:

This Lot 1d is for domain registry services to operate and manage Nationally Critical Public Sector Domains as described in paragraphs 2.4.1 to 2.4.3.

Nationally Critical Public Sector Domains are defined as domains where loss of access or an outage (for any reason) would cause immediate and extended outages of public-facing digital services, disrupting citizens' access to the services they depend on including benefits, and loss and disruption of all Government internal communications, including public servants accessing their own internal IT.

There are a number of nationally critical domains within the UK, including but not limited to .gov.uk, .nhs.uk, gov.scot, gov.wales, .police.uk and .mod.uk.

The specification below is primarily intended for the purchase of critical domain management services, but not necessarily limited to domains that are critical.

2.4.2 Lot 1d Primary Services:

- a) The provision and operation of the technical infrastructure for a UK public sector authority to manage and govern a Nationally Critical Public Sector Domain.
- b) The provision and operation of the technical infrastructure for a UK public sector authority to manage and govern a Nationally Critical Public Sector Domain, plus the additional functions to enable the UK public sector authority to fully outsource the management and governance of a Nationally Critical Public Sector Domain

2.4.3 Lot 1d Technology, Equipment and Solutions:

The scope of this Lot includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 1d, including but not limited to:

a) Critical registry functions, as specified by ICANN (Internet Corporation for Assigned Names and Numbers):

- DNS (Domain Name System) resolution for registered domain names
- Operation of shared registration system
- Operation of registration data directory services
- Registry data escrow deposits
- Maintenance of a properly signed zone in accordance with DNSSEC (Domain Name Systems Security Extensions) requirements

These critical registry functions must have high resilience and availability, and be compliant with DNS open standards.

b) Critical registry functions with enhanced resilience and availability

- The critical registry functions specified above, but provided with enhanced resilience, availability, disaster recovery and business continuity
- The critical registry functions specified above, but in standby mode, and available as an emergency failover from a separate registry

c) Other registry functions:

- Registrar billing and accounting information
- IDN (Internationalised Domain Name) tables
- Registry lock

d) Other functions:

- ongoing assurance checks for customer domain records
- roadmap to implement EPP (Extensible Provisioning Protocol) a flexible protocol designed for allocating objects within registries over the Internet
- web interface for the UK public sector authority to manage and track approvals for domain applications
- web interface for registrars
- abuse detection
- anomaly detection
- DNS analytics

e) Functions to support the full management and governance of a Nationally Critical Public Sector Domain

In the case where the Primary Service is the full management and governance of a Nationally Critical Public Sector Domain:

- Registrant compliance, auditing, support, contracting, billing and on-boarding
- Registrar compliance, auditing, support, accreditation, contracting and on-boarding
- Registrar switchover, in the case of a non-compliant or failing registrar
- Accounts management of the registrar channel

2.4.4 Lot 1d Ancillary Services:

Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services may be set out by the Supplier in their Service Offers or responses to a Further Competition. These can include:

- transition and migration off an existing registry
- transition and migration onto new registry
- ad hoc consultancy services

2.5 Lot 2a: Intra site Connectivity (LAN)

2.5.1 Lot 2a Scope of Services:

This Lot 2a is for the provision of single site connectivity services, including local area networks (LAN) enabling interconnectivity as described in paragraphs 2.5.2 to 2.5.4.

2.5.2 Lot 2a Primary Services:

- a) Local area network (LAN) connectivity services, constrained to a single site, multiple sites in the same locale, campus sites and metropolitan area sites enabling a user to consume a locally hosted service.
- b) Local connectivity services to connect an end user device to a local service.

2.5.3 Lot 2a Technology, Equipment and Solutions:

The scope of this Lot 2a includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 2, including but not limited to:

- a) design, survey, build, management, support and maintenance for Lot 2 services
- b) wired and/or wireless solutions
- c) local area network (LAN) equipment and/or cabling and/or storage area network (SAN) equipment
- d) LAN power solution and managed equipment room
- e) local infrastructure audit and/or testing services (such as asset management tools)
- f) environmental and local access control solutions
- g) specialist security and/or operational management and/or monitoring solutions, including cloud based solutions
- h) optimal equipment operation services (such as air conditioning, fire suppression and power consumption management)

2.5.4 Lot 2a Ancillary Services:

The Ancillary Services for this Lot 2 are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

2.6 Lot 3a: IoT and Smart Cities (Smart shared and connected spaces)

2.6.1 Lot 3a Scope of Services:

This Lot 3a is for the provision of Solutions related to Smart Technologies, also referred to as “Smart shared and connected spaces”, and Internet of Things, as described in paragraphs 2.6.2 to 2.6.4.

2.6.2 Lot 3a Primary Services:

- a) Design, build and deliver solutions related to Smart shared and connected spaces, with applications in the areas including but not limited to: smart street lighting, smart buildings, waste management, water management, crime prevention, education and environment (air and noise pollution) monitoring.
- b) The provision of component parts or end-to-end solutions relating to smart technologies and connected spaces, including but not limited to:

- Technologies (sensors) required to gather data at the “edge”.
- Provision of connectivity to cloud-based data management platforms.
- Data analytics, storage, and data management platforms.
- Provision of data visualisation applications for decision making and monitoring.
- On-going maintenance, monitoring and management of systems, software and devices.

2.6.3 Lot 3a Technology, Equipment and Solutions:

The scope of this Lot 3a includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 3a, including but not limited to:

- a) design, survey, build, management, support and maintenance for Lot 3a services
- b) vendor agnostic solution design
- c) “Edge” sensor technologies, connectivity, data analytics platforms and visualisation applications.
- d) all forms of connectivity between sensors in the field and cloud-based or “on-premise” data management platforms, including but not limited to: SD-WAN, Public Wi-Fi, 5G, LPWAN (Low-power wide area network) and any other WAN connectivity technologies
- e) Infrastructure monitoring, preventative maintenance, and break-fix activities
- f) Data security and 3rd party integration into overall solution designs

2.6.4 Lot 3a Ancillary Services:

The Ancillary Services for this Lot 3a are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

Security and Surveillance services including the installation, maintenance and management of CCTV (Closed-circuit television) systems is now a part of this sub-Lot.

- a) design, survey, build, management, support and maintenance for Lot 3a services
- b) traditional and IP based CCTV services

- c) access control, remote door opening and automated gates and/or barriers
- d) image recording and archiving
- e) image recognition applications
- f) alarms and security monitoring
- g) supply of software, management, test and analysis tools
- h) CCTV as a service

2.7 Lot 3b: Communication Platform as a Service (CPaaS)

2.7.1 Lot 3b Scope of Services:

This Lot 3b is for the provision of software and hardware integration services to allow the Buyers applications to be interfaced to the communications suite with API's (Application Programming Interface), as described in paragraphs 2.7.2 to 2.7.4.

2.7.2 Lot 3b Primary Services:

The provision of API interfacing between the unified communications suites and buyer applications e.g. web-chat, telephony, social media, financial planning, enterprise resource planning (ERP) platform, sales and resource management.

2.7.3 Lot 3b Technology, Equipment and Solutions:

- a) design, build, test and deployment delivery and management, plus support and maintenance for Lot 3b services
- b) API development from communications suite to external omni-channel applications

2.7.4 Lot 3b Ancillary Services:

The Ancillary Services for this Lot 3b are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

2.8 Lot 4a: Analogue Telephony

2.8.1 Lot 4a Scope of Services:

This Lot 4a is for the procurement of analogue voice, previously known as traditional telephony, as described in paragraphs 2.8.1 to 2.8.3.

2.8.2 Lot 4a Primary Services:

Connecting analogue telephony equipment with the public switched telephone network including voice connectivity, voice call packages, SIP (Session initiation protocol) trunks, DDI (Direct dialling in) number ranges, equipment maintenance and support for legacy estates.

2.8.3 Lot 4a Technology, Equipment and Solutions:

The scope of this Lot includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 4a, including but not limited to:

- a) Design, survey, build, management, support and maintenance for Lot 4a services including transformation to IP telephony and equipment adaptation
- b) Adaptor/ convertor for internet protocol connection
- c) voice call packages (including voice minutes, volume packages)
- d) direct dial in (DDI) ranges
- e) End user devices
- f) SIP trunking
- g) the transitioning from existing legacy equipment estates into a new solution

2.8.4 Lot 4a Ancillary Services:

The Ancillary Services for this Lot 4a are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

2.9 Lot 4b: Digital Communication Services (Unified Communications):

2.9.1 Lot 4b Scope of Services:

This Lot 4b is for the provision of digital communications services. This covers the Unified Communications series of services, as described in paragraphs 2.9.1 to 2.9.3. UC is a term used for the integration of multiple business communication tools, voice calling, video conferencing, instant messaging and content sharing via a single integrated premises connection. This capability allows the user to seamlessly switch between the various modes of communication. UC services can be accessed by multiple devices, including mobile devices. Therefore, integration with fixed and mobile platforms is included.

2.9.2 Lot 4b Primary Services:

- a) Digital communications - including IP Telephony, unified communications and collaborative software applications including audio & video conferencing and business enablement application software to enhance the communication capability. UC services can be provided as on-premises, cloud-based or hybrid solutions.

2.9.3 Lot 4b Technology, Equipment and Solutions:

The scope of this Lot 4b includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 4b, including but not limited to:

- a) design, survey, build, management, support and maintenance for Lot 4b services including transformation support for the replacement and upgrade from analogue to digital estates
- b) Internet Protocol (IP) telephony services with the ability to make and receive multimedia messaging over an IP based network service
- c) Unified Communications- The provision of a consistent user interface for voice, video and data services allowing the full integration of these services within a single user device.
- d) voice call packages (including voice minutes, volume packages)
- e) direct dial in (DDI) ranges authentication and access management
- f) interconnection gateways to traditional PSTN call delivery services

- g) Provision on audio and video conferencing capability within the UC suite based on collaborative applications
- h) Provision on audio and video conferencing capability as a standalone service
- i) Access from all end-point devices, including mobiles, laptops, and tablets.
- j) Business enablement software as part of a UC solution
- k) contact centre functionality and features for the use of Buyer employees only, including but not limited to:
 - i) speech recognition software
 - ii) automated call distribution (ACD) functionality, including intelligent contact routing (ICR), enhanced queuing and transfer
 - iii) intelligent voice response (IVR) solutions involving provision of automated call routing using speech recognition software
 - iv) other specialist administrative and reporting tools
 - v) call recording and quality management solutions that record calls either for training,

2.9.4 Lot 4b Ancillary Services:

The Ancillary Services for this Lot 4b are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

2.10 Lot 4c: Contact Centre Services

2.10.1 Lot 4c Scope of Services:

This Lot 4c is for the provision of inbound and/or outbound contact centre management including automation and queuing to multiple answering points, as described in

paragraphs 2.10.2 to 2.10.4. This agreement provides the hardware and software solutions, not staff/ agent resources as an outsourced service.

2.10.2 Lot 4c Primary Services:

The ability to make outbound contact and respond to an incoming contact and route the contact to a predefined destination both within the Buyer's technical domain and/or external to the Buyer's technical domain.

2.10.3 Lot 4c Technology, Equipment and Solutions:

The scope of this Lot 4c includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 4c, including but not limited to:

- a) design, survey, build, test and deployment delivery and management, plus support and maintenance for Lot 4c services
- b) supply/support of equipment, commodity and managed services
- c) omnichannel customer experience platforms
- d) customer experience management software
- e) DDI and NGN (non-geographic numbers) ranges
- f) messaging services
- g) integration with the customer's existing telephony platform
- h) interactive voice response (IVR)
- i) specialist administrative and reporting tools
- j) automated call distribution (ACD)
- k) intelligent contact routing
- l) automatic speech recognition and associated technologies
- m) take back and transfer
- n) intelligent queuing
- o) enhanced routing
- p) telephony calls/email/web/social media integration
- q) automated call distribution (ACD) functionality, including intelligent contact routing (ICR), enhanced queuing and transfer
- r) interactive voice response (IVR) solutions involving provision of automated call routing using speech recognition software
- s) other specialist administrative and reporting tools

- t) call recording and quality management solutions that record calls either for training, development purposes and/or for compliance
- u) call transcription solutions including utterance and sentiment software

2.10.4 Lot 4c Ancillary Services:

The Ancillary Services for this Lot 4c are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

2.11 Lot 4d: Inbound Telephony Services

2.11.1 Lot 4d Scope of Services:

This Lot 4d is for the provision of telephone numbers for inbound call delivery, as described in paragraphs 2.11.2 to 2.11.4.

2.11.2 Lot 4d Primary Services:

The ability to complete calls to a dedicated telephone number answering point. It is usually associated with a call queue and contact centres where multiple calls are answered via a single number by multiple agents. The number can be geographic or non-geographic with calls being delivered to the customers telephone or business system for answering.

2.11.3 Lot 4d Technology, Equipment and Solutions:

The scope of this Lot includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 4d, including but not limited to:

- a) Inbound call management services for contact centre functionality,
- b) The ability to provide a Buyer with a non-geographic number; and deliver all calls to that number to the Buyer's nominated location.
 - a) design, survey, build, management, support and maintenance for Lot 4d services

b) Non-geographic numbers including but not limited to:

- 03xx number services
- 05xx number services
- 08xx number services
- 09xx number services

2.11.4 Lot 4d Ancillary Services:

The Ancillary Services for this Lot 4d are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

2.12 Lot 4e: Paging and Alerting Services

2.12.1 Lot 4e Scope of Services:

This Lot 4e is for the provision of a range of paging and mobile messaging services, as described in paragraphs 2.12.2 to 2.12.4.

2.12.2 Lot 4e Primary Services:

Paging and alerting services with the ability to provide and users receive, a tone, numeric or word based alert.

2.12.3 Lot 4e Technology, Equipment and Solutions:

The scope of this Lot includes the technology, equipment and solutions that may be required in the delivery of the Primary Services of this Lot 4e, including but not limited to:

- a) design, survey, build, management, support and maintenance for Lot 4e services
- b) bureau services
- c) local and/or national and/or international coverage

2.12.4 Lot 4e Ancillary Services:

The Ancillary Services for this Lot 4e are optional Services that enhance or otherwise supplement or support the delivery and/or the functionality of the Primary Services and will be set out by the Supplier in their Service Offers or responses to a Further Competition.

3. Social Value

- 3.1** The Supplier shall deliver Social Value through Customer Call-Off Contracts awarded under this Framework Agreement.
- 3.2** The Supplier shall note that Customers using the Framework Agreement can adopt any of the following approaches as part of the Call-Off Procedure:
- a) They may provide Suppliers with the Social Value priority statement set out in Framework Schedule 1 Specification and ask the Suppliers to outline what they can deliver to help meet these priorities, including a commitment to targets;
 - b) They may set specific targets based on the Social Value priority statement within Framework Schedule 1 Specification and ask Suppliers to deliver these targets through their Call-Off Contract;
 - c) They may include new Social Value measures based on the specific priorities of their organisation which are aligned to the policy areas set out in Framework Schedule 1 Specification, and then adopt the approach a) or b) above.

3.3 The following Social Value themes are relevant to Network Services:

3.3.1 Tackling economic inequality

The Supplier shall, in agreeing to this Framework Agreement, actively seek to develop their company policies and management culture to promote opportunities in an inclusive way and assist the UK Government in the Levelling up agenda.

Some aspects that customers may be requesting active participation in, may be (including but are not limited to):

- a) Creating training schemes that address skills gaps within the workplace that result in recognised qualifications.
- b) Promotion of awareness of careers and recruitment opportunities relating to known skills shortages or in high growth sectors relating to the subject matter of the contract.
- c) Identification of opportunities to grow supplier diversity in the contract supply chain or in the location/community where the contract is performed, including SME and VCSE participation and new business creation.
- d) Building innovative and/or disruptive technologies into network solutions that increase efficiency, quality, whilst reducing the overall cost baseline.

3.3.2 Equal opportunity

The Supplier shall, in agreeing to this Framework Agreement, actively seek to develop their company policies and practices to comply with the Equal Opportunities Act of 2010. The key principles being:

- Eliminate discrimination.
- Advance equality of opportunity.
- Foster good relations between different people when carrying out their activities.

The Supplier shall note that by law, all organisations with 250 or more employees must publish and report specific figures about their gender pay gap, and the Authority expects our Suppliers to progress towards equalising this.

The Supplier shall note that the Authority expects Suppliers and Supplier Supply Chains to support and encourage employment and skills development opportunities through the performance of this Framework Agreement, with a specific focus on opportunities for priority groups, including but not limited to:

- People with disabilities
- ex-offenders
- BAME; and
- long-term unemployed

This support may include but is not limited to:

- a) Apprenticeship and work experience placements
- b) Part-time and full-time employment and flexible working opportunities
- c) Providing stable employment and hours of work, and avoiding exploitative employment practices including, for example, inappropriate use of zero hour contracts or other forms of demand driven contracts
- d) supporting individuals to fulfil their potential with further education, employment or training e.g. coaching, mentoring, CV and interview skills
- e) providing funded training and professional development opportunities for existing employees
- f) providing funded training opportunities (for individuals not employed by Supplier)
- g) fair and equal pay policy; and offering a range of employee assistance schemes.

3.3.3 COVID-19 Recovery

The Supplier shall, in agreeing to this Framework Agreement, seek to help local communities to manage and recover from the impact of COVID 19.

The Supplier shall note the ways in which they may be able to support this recovery, including but are not limited to:

- a) Create employment, re-training and other return to work opportunities for those left unemployed by COVID-19, particularly new opportunities in high growth sectors.
- b) Support people and communities to manage and recover from the impacts of COVID-19, including those worst affected or who are shielding.
- c) Support organisations and businesses to manage and recover from the impacts of COVID-19, including where new ways of working are needed to deliver Services.
- d) Support the physical and mental health of people affected by COVID-19, including reducing the demand on health and care Services.
- e) Improve workplace conditions that support the COVID-19 recovery effort including effective social distancing, remote working, and sustainable travel solutions.
- f) Fair, inclusive and ethical employment practices & skills development.

3.3.4 Fighting climate change

The Supplier shall, in agreeing to this Framework Agreement, be accountable for continuous development and execution of their Carbon Net Zero Plan, and actively seek to develop their company policies, and practices to promote the battle against climate change.

The Supplier shall note the ways in which they may be able to support this recovery, including but are not limited to:

- a) Influence and/or incentivise staff, suppliers, customers and communities through the delivery of call-off contracts to support environmental protection and improvement initiatives.
- b) Invest in the adoption and/or deployment of technologies that help reduce carbon emissions in service delivery across the entire supply chain.
- c) Invest in the monitoring and reporting of carbon emissions of the corporation, their supply chain, and the solutions they deliver to the customer.

3.3.5 Other Social Value Considerations

The Supplier shall note other Social Value considerations which may be considered by the Customer at Call Off stage. These include but are not limited to:

- a) delivering a diverse Supply Chain
- b) safe & secure Supply Chains: addressing modern slavery and exploitation in our Supply Chain
- c) environmental sustainability: promoting sustainable production and consumption and an improvement in environmental quality in support of the 25 year environment plan
- d) ethical behaviour standards
- e) wellbeing & community benefits
- f) measurement and reporting

The Supplier shall develop and maintain a plan throughout the life of the Framework Agreement detailing how the Supplier will contribute to the overall achievement of our Social Value priorities. For the avoidance of doubt:

The Social Value commitments and targets made during the Call-Off Procedure will form part of the contractual agreement between the Buyer and the Supplier, therefore bidders should only commit to activities that are within their capacity and capability to deliver.

Social value forms part of the quality criteria and will be evaluated independently of price. Suppliers are therefore strongly advised not to include any additional costs related to social value as part of the price submission as this may negatively impact the competitiveness of Supplier overall tender submission.

The Supplier must provide an implementation plan to the Buyer detailing how the required Social Value commitments will be delivered through the Call-Off Contract.

Buyers and Suppliers will jointly agree the timeline for delivering the targets and measures that were committed to by the Supplier during the Call Off Procedure.

The Buyer can identify specific social value priorities at call-off.

The Supplier shall note that in delivering Social Value, the following measures may be used:

The Supplier must manage, measure and report on the delivery of Social Value throughout the life of all Call-Off Contracts under this Framework Agreement.

The Supplier must provide an annual Social Value delivery statement to the Authority detailing the Social Value that has been delivered through Call-Off Contracts under this Framework.

As part of the civil society strategy implementation the Authority reserves the right to publish information on the delivery of Social Value through this Framework and may contact Suppliers requesting case studies for the purpose of increasing awareness and sharing knowledge.

4. Continuous Improvement

Framework Schedule 1 (Specification)

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The Supplier shall design, implement and review Services, ensuring that potential improvements to efficiency and effectiveness are considered at all times. Further continuous improvement requirements of the framework are outlined in Call Off Schedule 3.

PART B: Services description

A copy of the Supplier's response to relevant award questionnaire questions will be inserted here

Framework Schedule 2 (Framework Tender)

[Insert Supplier Framework Tender response]

Framework Schedule 3 (Framework Prices)

1. How Framework Prices are used to calculate Call-Off Charges

1.1 The Framework Prices:

- 1.1.1 will be used as the basis for the charges (and are maximums that the Supplier may charge) under each Call Off Contract; and
- 1.1.2 cannot be increased except as in accordance with this Schedule.

1.2 The Charges:

- 1.2.1 shall be calculated in accordance with the terms of the Call Off Contract and in particular in accordance with the terms of the Order Form;
 - 1.2.2 cannot be increased except as specifically permitted by the Call Off Contract and in particular shall only be subject to Indexation where specifically stated in the Order Form;
 - 1.2.3 shall not be impacted by any change to the Framework Prices unless the Supplier reduces their framework prices as a result of a benchmarking exercise, in which case the Supplier shall use such reduced Framework Prices to calculate the Charges.
- 1.3 Any variation to the Charges payable under a Call Off Contract must be agreed between the Supplier and the Buyer and implemented using the same procedure for altering Framework Prices in accordance with the provisions of this Framework Schedule 3.

2. How Framework Prices are calculated

- 2.1 The pricing mechanisms and prices set out in Annex 1 shall be available for use in calculation of Framework Prices in Call Off Contracts, subject to paragraphs 1.1 and 1.2.

3. Are costs and expenses included in the Framework Prices

- 3.1 Except as expressly set out in Paragraph 4 below, or otherwise stated in a Call Off Order Form the Framework Prices shall include all costs and expenses relating to the provision of Deliverables. No further amounts shall be payable in respect of matters such as:
 - 3.1.1 incidental expenses such as travel, subsistence and lodging, document or report reproduction, shipping, desktop or office equipment costs, network or data interchange costs or other telecommunications charges; or
 - 3.1.2 costs incurred prior to the commencement of any Call Off Contract.

4. When the Supplier can ask to change the Framework Prices

- 4.1 The Framework Prices will be fixed for the first **twelve (12) months** following the Framework Contract Commencement Date (the date of expiry of such period is a "**Review Date**"). After this Framework Prices can only be adjusted on each following yearly anniversary (the date of each such anniversary is also a "**Review Date**").
- 4.2 The Supplier shall give CCS at least three (3) Months' notice in writing prior to a Review Date where it wants to request an increase. If the Supplier does not give notice in time then it will only be able to request an increase prior to the next Review Date.
- 4.3 Any notice requesting an increase shall include:
 - 4.3.1 a list of the Framework Prices to be reviewed;
 - 4.3.2 for each Framework Price under review, written evidence of the justification for the requested increase including:
 - (a) a breakdown of the profit and cost components that comprise the relevant Framework Price;
 - (b) details of the movement in the different identified cost components of the relevant Framework Price;
 - (c) reasons for the movement in the different identified cost components of the relevant Framework Price;
 - (d) evidence that the Supplier has attempted to mitigate against the increase in the relevant cost components; and
 - (e) evidence that the Supplier's profit component of the relevant Framework Price is no greater than that applying to Framework Prices using the same pricing mechanism as at the Contract Commencement Date and
 - (f) shall be in the format as notified by CCS to the Supplier from time to time.
- 4.4 CCS shall consider each request for a price increase which is submitted in accordance with this Paragraph 4. CCS may grant Approval to an increase at its sole discretion.
- 4.5 Where CCS approves an increase then it will be implemented from the first (1st) Working Day following the relevant Review Date or such later date as CCS may determine at its sole discretion and Annex 1 shall be updated accordingly.

5. Other events that allow the Supplier to change the Framework Prices

- 5.1 The Framework Prices can also be varied (and Annex 1 will be updated accordingly) due to:
 - 5.1.1 a Specific Change in Law in accordance with Clause 24;
 - 5.1.2 a review in accordance with insurance requirements in Clause 13;
 - 5.1.3 a benchmarking review in accordance with Call Off Schedule 16 (Benchmarking); and
 - 5.1.4 a request from the Supplier, which it can make at any time, to decrease the Framework Prices.

6. Not used

7. Expenses

- 7.1 Expenses shall only be recoverable where:
 - 7.1.1 the Time and Materials pricing mechanism is used;
 - 7.1.2 the Order Form states that recovery is permitted; and
 - 7.1.3 they are Reimbursable Expenses and are supported by Supporting Documentation.
- 7.2 For the purposes of paragraph 7.1 of this Schedule, a **“Time and Materials pricing mechanism”** means a pricing mechanism whereby the Buyer agrees to pay the Supplier based upon the work performed by the Supplier's Staff, and for materials used in the project, no matter how much work is required to complete the project. In the event that a Call-Off Contract uses this pricing mechanism the price shall be based upon the prices detailed in Table 1 of Annex 1 to Framework Schedule 3.
- 7.3 The Buyer shall provide a copy of their current expenses policy to the Supplier upon request.]

Annex 1: Rates and Prices

[Guidance Note: Place a copy of the Supplier's response to relevant award questionnaire pricing here for each Lot the Supplier has been awarded.]

Table 1: Time and Materials

The Supplier (and its Sub-Contractor) shall not be entitled to include any uplift for risks or contingencies within its day rates

The rates below shall [not] be subject to variation by way of Indexation

Staff Grade	Day Rate (£)

Table 2: Fixed Prices

The rates below shall [not] be subject to variation by way of Indexation

Framework Price	Fixed Framework Price (£)
[e.g. M3]	
[e.g. SC3]	

PART B: Catalogue

1. Catalogue

- 1.1 Part B of this Schedule sets out the mechanism for managing and maintaining the Catalogue.
- 1.2 The Catalogue and its constituent Service Offer(s) are used where the Buyer awards a Call-Off Contract via a direct award procedure in accordance with Framework Schedule 7.
- 1.3 The Catalogue comprises all the Supplier's live Service Offers.
- 1.4 A Service Offer shall comprise only of Service Offers specific to the relevant Lot(s) to which a Supplier has been appointed as identified in the Framework Award Form.
- 1.5 Service Offers will be deemed to have been made available by the Supplier to Buyers on the first day the Service Offer appears on the Catalogue.
- 1.6 All Service Offers must be continuously available on the Catalogue from first publication on the Catalogue Publication Portal.

2. Publishing the Catalogue

- 2.1 The Catalogue will be made available to Buyers using the Catalogue Publication Portal.
- 2.2 By participating in this Framework Contract, the Supplier gives CCS the right to publish without amendment all Service Offers on any public facing portal or any media, including any electronic medium, CCS deems appropriate.
- 2.3 The Supplier may also make its Service Offers available to Buyers using its own portals or media, including any electronic medium, subject to CCS approval.

3. Service Offers

- 3.1 Each Service Offer must be described using the Service Offer Template which
 - 3.1.1 must:
 - a) identify a unique reference number for each Service Offer;

- b) identify the Lot or Lots from which the Service Offer is derived, subject to paragraph 1.4;
- c) include a suitable description of the Services relevant to the Service Offer;
- d) where appropriate, include an outline Implementation Plan;
- e) include a Service Offer Price Card; and

3.1.2 may include:

- a) Services from any Lot or combination of Lots, subject to paragraph 1.4;
- b) conditions that must be met by the Buyer prior to the Service Offer being a valid offer that can be accepted by it. Any conditions must be reasonable and proportionate to the Service Offer;
- c) where within the scope of the Service Offer Template, refine or amend parts of the Call-Off Schedules (such as the Service Levels) provided that such refinements and/or amendments do not amount to a material change of this Framework Contract within the meaning of the Regulations.

3.2 Each Service Offer must be capable of flexing to meet a range of similar Buyer requirements directly related to the Service Offer, including moves, adds and changes where appropriate and subject to the available capacity.

4. Service Offer Price Card

- 4.1 The Service Offer Price Card must detail the prices for the Services made available by the Supplier in the Service Offer.
- 4.2 The Buyer must be able to readily identify the Charges relevant to their Statement of Requirement from the Service Offer Price Card.
- 4.3 Where Framework Prices form part of the Service Offer the prices in the Service Offer Price Card shall comply with Framework Prices.

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5. Creating a Service Offer

- 5.1 The Supplier shall complete a Service Offer Template for the Service Offer and append an appropriate Service Offer Price Card in accordance with paragraph 4.
- 5.2 Where CCS requests a Service(s) to be added to the Catalogue, the Supplier, unless otherwise agreed in writing with CCS, will create and add a Service Offer to the Catalogue for Service(s), in accordance with paragraph 5.1.

6. Adding a Service Offer to the Catalogue

- 6.1 The Supplier shall add the Service Offer to the Catalogue in accordance with paragraph 2.

7. Withdrawing a Service Offer

- 7.1 Subject to paragraph 1.6, the Supplier may withdraw a Service Offer and may remove it from the Catalogue Publication Portal, provided it has passed the minimum 30 days publication period and the validity date of the Service Offer itself.

8. Not used

9. Auditing the Catalogue

- 9.1 CCS will review the Catalogue and determine whether to inspect one or more Service Offers.
- 9.2 The Supplier will be notified of any Service Offers where CCS wishes to inspect Service Offer Price Cards and shall be required to send the relevant completed Service Offer Price Cards to CCS within five (5) Working Days of receipt of the notice.
- 9.3 CCS will notify the Supplier of any actions including any actions identified in paragraph 11.3 that result from the inspection (the **"Inspection Action Notice"**).
- 9.4 On receipt of an Inspection Action Notice, the Supplier shall:
- 9.4.1 immediately acknowledge receipt of the Inspection Action Notice;
 - 9.4.2 undertake and complete the actions within five (5) Working Days of receipt of the Inspection Action Notice; and
 - 9.4.3 inform CCS once the actions have been successfully completed.

10. Consequences of Failure to comply with CCS Requests

If a Supplier fails to provide a Service Offer Price Card for inspection on request in accordance with paragraph 9.2, CCS shall be entitled to terminate this Framework Contract for material Default.

11. Invalid Service Offer

- 11.1 Any offer of Services or purported Service Offer(s) that, in CCS's sole discretion, does not comply with any one or more of the

requirements set out in paragraphs 1 to 5 of this Part B above shall be deemed invalid (**“Invalid Service Offer”**).

- 11.2 An Invalid Service Offer shall not be an eligible Service Offer for inclusion on the Catalogue.
- 11.3 If CCS identifies an Invalid Service Offer, the Supplier shall, as directed by CCS in the Inspection Action Notice:
 - 11.3.1 immediately remove the Service Offer from the Catalogue;
 - 11.3.2 amend or otherwise change the offer of Services and/or Service Offer Price Card to reflect a valid Service Offer;
 - 11.3.3 inform CCS of any Buyers that have accepted the offer using a direct award procedure;
 - 11.3.4 provide CCS for inspection all Service Offer Price Cards for every Service Offer (including Service Offers withdrawn from the Catalogue in accordance with paragraph 7 of this Part B) of every Catalogue in which the Supplier participates; and/or
 - 11.3.5 any other remedial activity that CCS deems appropriate to rectify the Invalid Service Offer or its acceptance through direct award by a Buyer.
- 11.4 If the Supplier fails to comply with any direction issued by CCS pursuant to paragraph 11 of this Part B, CCS shall be entitled to terminate this Framework Contract for material Default.
- 11.5 Where a Call-Off Contract has been entered into on the basis of an Invalid Service Offer, CCS shall be entitled to:
 - 11.5.1 terminate this Framework Contract for material Default; and/or
 - 11.5.2 notify the Buyer, to which the Call-Off Contract relates, of the Invalid Service Offer.

PART B ANNEX 1: SERVICE OFFER TEMPLATE

Service Offer Reference No.....

[Guidance Note to Supplier: The supplier Service Offer identifier in the Catalogue Publication Portal.]

Lot(s):

[Guidance Note to Supplier: declare the Lot or Lots applicable to the Service Offer).]

Service Offer Effective Date:

[Guidance Note to Supplier: insert the date when the Service Offer will be available to Buyers on the Catalogue.]

Service Offer Expiry Date:

[Guidance Note to Supplier: Insert the date the Service Offer will be/was removed from the Catalogue. If there is no planned Expiry Date, leave blank.]

Service Description:

[Guidance Note: This section is a description of the Services being offered by the Supplier as part of the Service Offer.]

Conditions on the Buyer:

[Guidance Note: In this section the Supplier may identify any conditions that the Buyer must fulfil if the order is to be a valid Order. For example: the Buyer's existing implementation must be the same as identified by the Supplier in its Service Description (e.g. Microsoft-based operating systems are a requirement for the Services to operate); the Supplier may include an option for the Buyer to add an additional Call-Off Schedule available in Part B of Framework Schedule 6 (Order Form).]

Outline Implementation Plan

[Guidance Note: In this section, the Supplier must provide an outline Implementation Plan. For example, the Supplier may identify that onboarding activity cannot commence any earlier than 45 days after the Order is placed. To note, the outline Implementation Plan will be updated to become the draft Implementation Plan once the Order Form has been received by the Supplier (as described in Call-Off Schedule 13 (Implementation Plan)).]

Service Level Agreement

[Guidance Note: If requested by the Buyer, in this section, the Supplier must provide a Service Level agreement, including Availability, Fault Rectification and Quality aspects of service (Call-Off Schedule 14 (Service Levels)). The Supplier must also identify if/when Service Credits are to be paid and what constitutes a critical service failure.]

Service Offer Price Card:

The Service Offer Price Card defines the price for Services made available to Buyers through the Service Offer.

[Guidance Note: The Supplier must append a suitable Service Offer Price Card for the Services.]

Order of Precedence

In the event of a conflict between the terms and conditions included within this Service Offer and the RM6116 Framework or Call-Off terms, then the Framework or Call-Off terms will take precedence.

Framework Schedule 4 (Framework Management)

1. Definitions

- 1.1 In this Schedule, the following words shall have the following meanings and they shall supplement Joint Schedule 1 (Definitions):

"Supplier Framework Manager"	has the meaning given to it in Paragraph 3.1 of this Schedule; and
"Supplier Review Meetings"	has the meaning given to it in Paragraph 3.9 of this Schedule.

2. How CCS and the Supplier will work together

- 2.1 The successful delivery of this Contract will rely on the ability of the Supplier and CCS to develop a strategic relationship immediately following the conclusion of this Contract and maintaining this relationship throughout the Framework Contract Period.
- 2.2 To achieve this strategic relationship, there will be a requirement to adopt proactive framework management activities which will be informed by quality Management Information, and the sharing of information between the Supplier and CCS.
- 2.3 This Schedule outlines the general structures and management activities that the Parties shall follow during the Framework Period.

3. Framework Management

Framework Management Structure

- 3.1 The Supplier shall provide a suitably qualified nominated contact (the **"Supplier Framework Manager"**) who will take overall responsibility for delivering the Goods and/or Services required within this Contract, as well as a suitably qualified deputy to act in their absence.
- 3.2 The Supplier shall put in place a structure to manage this Contract in accordance with Framework Schedule 1 (Specification) and the Performance Indicators.
- 3.3 A governance structure will be agreed between the Parties as soon as reasonably practicable following the Framework Start Date.
- 3.4 Following discussions between the Parties following the Framework Start Date, where requested by CCS the Supplier shall produce and issue to CCS a draft supplier action plan (the **"Supplier Action Plan"**). CCS shall not unreasonably withhold or delay its agreement to the draft Supplier Action Plan. The Supplier Action Plan shall be agreed between the Parties and come into effect within two weeks from receipt by the Supplier of the draft Supplier Action Plan.

- 3.5 The Supplier Action Plan shall be maintained and updated on an ongoing basis by CCS. Any changes to the Supplier Action Plan shall be notified by CCS to the Supplier. The Supplier shall not unreasonably withhold its agreement to any changes to the Supplier Action Plan. Any such changes shall, unless CCS otherwise Approves, be agreed between the Parties and come into effect within two weeks from receipt by the Supplier of CCS's notification.
- 3.6 The Supplier agrees to comply with its obligations in the Supplier Action Plan as updated from time to time.
- 3.7 The Supplier shall comply with all requests from CCS in regard to compliance requirements as required including:
 - 3.7.1 Dun and Bradstreet risk failure score monitoring;
 - 3.7.2 regular evidence that the Required Insurances and Additional Insurances have been renewed and maintained;
 - 3.7.3 invoice payment performance; and
 - 3.7.4 verification of required accreditations & certifications.
- 3.8 Suppliers should participate in further competitions when identified as part of the final bidder list. Failure to bid on further competitions without an acceptable reason may result in the Supplier being suspended from the Framework, in accordance with Clause 10.7 (Partially ending and suspending the contract), for a period as decided by CCS.

Supplier Review Meetings

- 3.9 Regular performance review meetings will take place at CCS's premises throughout the Framework Contract Period ("**Supplier Review Meetings**") at such times and frequencies as CCS determine from time to time (which are anticipated to be once every Month or less). The Parties shall be flexible about the timings of these meetings.
- 3.10 The Supplier Review Meetings will review the Supplier's performance under this Contract and, where applicable, the Supplier's adherence to the Supplier Action Plan. The agenda for each Supplier Review Meeting shall be set by CCS and sent to the Supplier in advance.
- 3.11 CCS may ask the Supplier to discuss any instances known to the Supplier where any Other Contracting Authority decided not to use this Framework Contract for their order.
- 3.12 The Supplier Review Meetings shall be attended, as a minimum, by CCS Representative(s) and the Supplier Framework Manager.

4. How the Supplier's Performance will be measured

4.1 The Supplier's performance will be measured by the following Performance Indicators ("PI"):

Performance Indicator (PI)	PI Target	Measured by
1. Framework Management		
1.1 MI returns: All accurate MI returns to be returned to CCS by the 5th Working Day of each month.	100%	Confirmation of receipt and time of receipt by the CCS (as evidenced within the CCS's data warehouse (MISO) system)
1.2 All undisputed invoices to be paid within 30 calendar days of issue.	100%	Confirmation of receipt and time of receipt by the CCS (as evidenced within the CCS's CODA system).

1.3 Supplier self-audit certificate to be issued to the CCS in accordance with the Framework Agreement.	100%	Confirmation of receipt and time of receipt by the CCS.
1.4 Actions identified in an Audit Report to be delivered by the dates set out in the Audit Report.	100%	Confirmation by the CCS of completion of the actions by the dates identified in the Audit Report.
1.5 Supplier to make payments to all sub-contracted Providers in line with the agreed payment terms.	Monthly	Evidence provided in the monthly performance report submitted to the CCS.
1.6 Social Value: Report on an annual basis from the Framework Start Date all social value commitments and their benefits for all Call-Off Contracts.	Annually	Confirmation of receipt and time of receipt by CCS.
1.7 Insurance: Evidence of required insurance to be issued to CCS on the anniversary of the Framework Contract Start Date	Annually	Confirmation of receipt by CCS.
1.8 Modern Slavery Assessments: Supplier to provide an annual Slavery and Human Trafficking report to be issued to CCS on the anniversary of the Framework Contract Start Date.	Annually	Confirmation of receipt by CCS.

Framework Schedule 4 (Framework Management)

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1.9 Carbon Net Zero: Supplier to provide an annual Carbon Reduction Plan	Annually	Confirmation of receipt by CCS.
1.10 Forecasting: Supplier shall comply with all requests from CCS to provide an annual rolling forecast of expected monthly invoice value for Call-Off Contracts identified by CCS	As CCS determine from time to time (to be no less than every three (3) Months).	Confirmation of receipt by CCS.
1.11 Call- Off Contract visibility Supplier shall comply with all requests from CCS to provide a copy of a Call-Off Contract (within five (5) working days)	As and when requested by CCS	Confirmation of receipt and time of receipt by CCS.

- 4.2 The Supplier shall comply with the PIs and establish processes to monitor its performance against them and the Supplier's achievement of PIs shall be reviewed during the Supplier Review Meetings.
- 4.3 CCS reserves the right to adjust, introduce new, or remove PIs throughout the Framework Contract Period, however any significant changes to PIs shall be agreed between CCS and the Supplier in accordance with the Variation Procedure.
- 4.4 CCS reserves the right to use and publish the performance of the Supplier against the PIs without restriction.

5. What the Supplier must do to measure their performance

- 5.1 The Supplier shall cooperate in good faith with CCS to develop efficiency tracking performance measures for this Contract. This shall include the following (but this list is not exhaustive and may be developed during the Framework Contract Period):

- 5.1.1 tracking reductions in product volumes and product costs, in order to demonstrate that Buyers are consuming less and buying more smartly;

- 5.1.2 developing additional PIs to ensure that this Contract supports the emerging target operating model across central government (particularly in line with centralised sourcing and category management, procurement delivery centres and payment processing systems and shared service centres).
- 5.2 The metrics that are to be implemented to measure efficiency shall be developed and agreed between CCS and the Supplier. Such metrics shall be incorporated into the list of PIs set out in this Schedule.
- 5.3 The ongoing progress and development of the efficiency tracking performance measures shall be reported through framework management activities as outlined in this Schedule.

6. What to do if CCS and the Supplier can't agree about the performance

- 6.1 In the event that CCS and the Supplier are unable to agree the performance score for any PI during a Supplier Review Meeting, the disputed score shall be recorded and the matter shall be referred to CCS Authorised Representative and the Supplier Authorised Representative in order to determine the best course of action to resolve the matter (which may involve organising an ad-hoc meeting to discuss the performance issue specifically).
- 6.2 In cases where CCS Authorised Representative and the Supplier Authorised Representative fail to reach a solution within a reasonable period of time, the matter shall be referred to the Dispute Resolution Procedure.

7. Marketing

- 7.1 The Supplier shall ensure that a person is appointed as Supplier Marketing Contact who shall be responsible for the marketing obligations of the Supplier in relation to this Contract.

How the Supplier must contribute to CCS publications

- 7.2 The Supplier shall supply current information relating to the Goods and/or Services it offers for inclusion in CCS marketing materials when required by CCS from time to time.
- 7.3 Such information shall be provided in such form and at such time as CCS may request.
- 7.4 Failure to comply with the provisions of Paragraphs 7.2 and 7.3 may result in the Supplier's exclusion from the use of such marketing materials.

What Suppliers can say in its own publications

- 7.5 All marketing materials produced by the Supplier in relation to this Framework shall at all times comply with the CCS branding guidance at <https://www.gov.uk/government/publications/crown-commercial-service-supplier-logo-and-brand-guidelines>.
- 7.6 The Supplier will periodically update and revise its marketing materials to ensure ongoing compliance.
- 7.7 The Supplier shall regularly review the content of any information which appears on its website and which relates to each Contract and ensure that such information is up to date at all times.

7.8 The Supplier shall obtain all appropriate approvals prior to publishing any content in relation to a Contract with that Party using any media, including on any electronic medium, and the Supplier will ensure that such content is regularly maintained and updated. In the event that the Supplier fails to maintain or update the content, CCS or the relevant Buyer may give the Supplier notice to rectify the failure and if the failure is not rectified to its reasonable satisfaction within one (1) Month of receipt of such notice, shall have the right to remove such content itself or require that the Supplier immediately arranges the removal of such content.

8. Where CCS might oversee parts of the Call-Off Contracts

8.1 CCS shall have oversight of certain processes which are operated under Call-Off Contracts. Such oversight shall be provided in relation to the operation of the following Schedules in each Call-Off Contract:

- 8.1.1 Call-Off Schedule 3 (Continuous Improvement);
 - 8.1.2 Call-Off Schedule 8 (Business Continuity and Disaster Recovery);
 - 8.1.3 Call-Off Schedule 9 (Security); and]
 - 8.1.4 Call-Off Schedule 16 (Benchmarking).
- (the "**Supported Schedules**")

How the Supplier must support CCS involvement

8.2 The Supplier shall co-operate as reasonably required by CCS in relation to the Supported Schedules including:

- 8.2.1 provision of information;
- 8.2.2 allowing CCS to act as agent for the Buyers under the Supported Schedules for such matters as CCS may notify to the Supplier from time to time; and
- 8.2.3 such other matters as CCS may notify to the Supplier from time to time.

Where CCS might manage the process for Buyers collectively

8.3 In addition to general oversight as referred to above the following specific oversight shall apply to the individual Supported Schedules:

- 8.3.1 Call-Off Schedule 3 (Continuous Improvement) - the Supplier shall:
 - (a) adopt a policy of continuous improvement in relation to the Deliverables;
 - (b) where requested by CCS, create, maintain and update a continuous improvement plan for improving the provision of the Deliverables and/or reducing the Charges and, where requested by CCS, incorporate any improvement identified in accordance with the Variation Procedure.
- 8.3.2 Call-Off Schedule 8 (Business Continuity and Disaster Recovery) - the Supplier shall:

Framework Schedule 4 (Framework Management)

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- (a) create and hold a template BCDR plan that can be used by each Buyer and shall make it available to CCS so that it can be published to potential Buyers; and

- (b) notify CCS as soon as possible but no later than three (3) Working Days in the event of the invocation or potential invocation of any BCDR plan and the Supplier shall provide such support as CCS may reasonably require to coordinate the application of BCDR plans across all Call Off Contracts.

8.3.3 Call-Off Schedule 9 (Security) - the Supplier shall:

- (a) create and hold a template Security Plan that can be used by each Buyer and shall make it available to CCS so that it can be published to potential Buyers; and
- (b) notify CCS as soon as possible but no later than one (1) Working Day in the event of breach of any Security Plan and the Supplier shall provide such support as CCS may reasonably require to coordinate the application of Security Plans across all Call Off Contracts.

8.3.4 Call-Off Schedule 16 (Benchmarking) - the Supplier:

- (a) shall notify CCS within ten (10) Working Days in the event that any benchmarker is appointed in respect of any Call Off Contract and the Supplier recognises that CCS may want to co-ordinate how benchmarking is conducted across multiple Call Off Contracts;
- (b) shall where CCS is appointed as agent by Buyers in respect of benchmarking, co-operate with CCS in order to operate the benchmarking as efficiently as possible;
- (c) agrees that notwithstanding the remainder of Clause 15 (Confidentiality) in the Core Terms, CCS shall be entitled to publish the results of any benchmarking of the Framework Prices to Other Contracting Authorities (subject to the other party entering into reasonable confidentiality undertakings).

Framework Schedule 5 (Management Charges and Information)

1. How to provide management information to CCS

- 1.1 The Supplier shall, at no charge, provide timely, full, accurate and complete MI Reports to CCS which incorporate the data, in the correct format, required by the MI Reporting Template and such guidance that CCS may issue from time to time.
- 1.2 The initial **MI Reporting Template** is set out in the Annex to this Schedule and CCS may change it from time to time (including the data required and/or format) and issue a replacement version. CCS shall give at least thirty (30) days' notice in writing of any such change and shall specify the date from which it must be used. The Supplier may not make any amendment to the current MI Reporting Template without the prior Approval of CCS.

2 Reporting period

- 2.1 **MI Reports** must be completed and returned to CCS by the fifth working day of every month during the framework period and thereafter until all transactions relating to call-off contracts have permanently ceased. If at any point there is a period of a month where no reportable transactions occur, then a declaration must be made confirming no business has been conducted, in place of data submission.
- 2.2 In an MI Report, the Supplier should report contract data that is one month in arrears. For example, if an invoice is raised for October but the work was actually completed in September, the Supplier must report the invoice in October's MI Report and not September's. Each Order received by the Supplier must be reported only once, i.e. when the Order is received.

3. Submitting the information

- 3.1 MI Reports shall be completed electronically and uploaded to the CCS data submission service available at:
<https://www.reportmi.crowncommercial.gov.uk>
- 3.2 MI Reports must be completed in pounds sterling unless CCS has given prior written consent to the use of another currency.
- 3.3 CCS may reasonably require that MI Reports be submitted by an alternative means such as email.
- 3.4 Where requested by CCS, the Supplier shall provide Management Information to a Buyer as specified by CCS.

3.5 The Supplier shall:

3.5.1 promptly after the Framework Start Date provide an e-mail and/or postal address to which CCS will send invoices for the Management Charge and monthly statements relating to the invoicing of the Management Charge;

3.5.2 promptly after the Framework Start Date provide at least one contact name and contact details for the purposes of queries relating to either Management Information or invoicing; and

3.5.3 immediately notify CCS of any changes to the details previously provided to CCS under this Paragraph 3.5.

4. How CCS can use the Management Information

4.1 The Supplier grants CCS a non-exclusive, transferable, perpetual, irrevocable, royalty free licence to:

4.1.1 use and to share with any Buyer, Other Contracting Authority and Relevant Person; and/or

4.1.2 publish (subject to any information that is exempt from disclosure in accordance with the provisions of FOIA, being redacted),

any Management Information supplied to CCS for CCS' normal operational activities including administering this Contract and/or all Call-Off Contracts, monitoring public sector expenditure, identifying savings or potential savings and planning future procurement activity.

4.2 CCS may consult with the Supplier to inform its decision to publish information. However, CCS shall retain absolute discretion regarding the extent, content and format of any disclosure.

4.3 Following receipt of the completed MI Report, CCS shall invoice the Supplier for the Management Charge payable for the Month to which the MI report relates.

5. Paying the Management Charge

5.1 The **Management Charge** excludes VAT which is payable on provision of a valid VAT invoice.

5.2 The Supplier shall pay CCS the Management Charge (and other charges payable in accordance with this Schedule) in cleared funds within 30 days of receipt by the Supplier of an undisputed invoice to such bank or building society account set out in the invoice.

6. What happens if the Management Charge is not paid?

- 6.1 Payment of undisputed and valid CCS invoices should be completed within thirty (30) days. CCS may take action on outstanding invoices by:
- 6.1.1 issuing the supplier with reminders that an invoice payment is due and/or overdue;
 - 6.1.2 charging statutory interest and charges on overdue invoices, as per the Late Payment of Commercial Debts (Interest) Act 1998;
 - 6.1.3 suspending the supplier from the agreement until such time that overdue invoices are paid; and/or
 - 6.1.4 terminating this contract.
- 6.2 If an Audit reveals that the Supplier has not paid any amount equal to or greater than:
- 6.2.1 one percent (1%) of the Management Charge due in respect of any one Contract Year or of any Call-Off Contract then, without prejudice to CCS's other rights under this Framework Contract, the Supplier shall reimburse CCS its reasonable costs incurred in relation to the Audit; and
 - 6.1.2 five per cent (5%) of the Management Charge due in respect of any one Contract Year of this Framework Contract or of any Call-Off Contract then, without prejudice to CCS's other rights under the Framework Contract, the supplier shall reimburse CCS its reasonable costs incurred in relation to the Audit and CCS shall be entitled to terminate this Framework Contract

7. What happens if the Management Information is wrong?

7.1 If the Supplier or CCS identify error(s) and/or omission(s) in historic MI Report(s), the Supplier must provide corrected MI report(s) to CCS on or before the date when the next MI Report is due. Corrections may be either in the form of an addendum to the next MI submission, or a resubmission of existing historic returns, at the discretion of CCS.

7.2 Following an **MI Failure**, CCS may issue reminders to the Supplier and require the Supplier to correctly complete the MI Report. The Supplier shall rectify any deficient or incomplete MI Report as soon as possible and not more than five (5) Working Days following receipt of any such reminder.

Meetings

7.3 The Supplier agrees to attend meetings between the Parties in person to discuss the circumstances of any MI Failure(s) at the request of CCS. If CCS requests such a meeting the Supplier shall propose and document measures as part of a Rectification Plan to ensure that the MI Failure(s) are corrected and do not occur in the future.

Admin fees

7.4 If, in any rolling three (3) Month period, two (2) or more MI Failures occur, the Supplier acknowledges and agrees that CCS shall have the right to invoice the Supplier Admin Fee(s) with respect to any MI Failures as they arise in subsequent Months.

7.5 The Supplier acknowledges and agrees that the Admin Fees are a fair reflection of the additional costs incurred by CCS as a result of the Supplier failing to provide Management Information as required by this Contract.

8. What happens if Management Information Reports are not provided?

8.1 If two (2) MI Reports are not provided in any rolling six (6) month period then an **MI Default** shall be deemed to have occurred and CCS shall be entitled to:

8.1.1 charge and the Supplier shall pay a **Default Management Charge** in respect of the Months in which the MI Default occurred and subsequent Months in which they continue, calculated in accordance with Paragraph 8.2.1 and/or

8.1.2 suspend the Supplier from the agreement until such time that deficient MI reports(s) are rectified; and/or

8.1.3 terminate this Contract.

8.2 The Default Management Charge shall be the higher of:

8.2.1 the average Management Charge paid or payable by the Supplier in the previous six (6) Month period or, if the MI Default occurred within less than six (6) months from the commencement date of the first Call-Off Contract, in the whole period preceding the date on which the MI Default occurred; or

8.2.2 the sum of five hundred pounds (£500).

Framework Schedule 5 (Management Charges and Information)

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8.3 If the Supplier provides sufficient Management Information to rectify any MI Default(s) to the satisfaction of CCS and the Management Information demonstrates that:

- 8.3.1 the Supplier has overpaid the Management Charge as a result of the application of the Default Management Charge then the Supplier shall be entitled to a refund of the overpayment, net of any Admin Fees where applicable; or
- 8.3.2 the Supplier has underpaid the Management Charge during the period when a Default Management Charge was applied, then CCS shall be entitled to immediate payment of the balance as a debt together with interest.

Annex: MI Reporting Template

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The MI Collection team in Data Insights create MI Templates. A minimum standard template is embedded below.

Contact:

<https://www.reportmi.crowncommercial.gov.uk/>



RM6116 NS3 MI
Template vFinal.xlsx

Framework Schedule 6 (Order Form Template and Call-Off Schedules)

Order Form Template

CALL-OFF REFERENCE: **[Insert]** Buyer's contract reference number]

THE BUYER: **[Insert]** Buyer's name]

BUYER ADDRESS **[Insert]** business address]

SUPPLIER REFERENCE **[Insert]** Supplier's reference number]

THE SUPPLIER: **[Insert]** name of Supplier]

SUPPLIER ADDRESS: **[Insert]** registered address (if registered)]

REGISTRATION NUMBER: **[Insert]** registration number (if registered)]

DUNS NUMBER: **[Insert]** if known]

SID4GOV ID: **[Insert]** if known]

[Buyer guidance: This Order Form, when completed and executed by both Parties, forms a Call-Off Contract. A Call-Off Contract can be completed and executed using an equivalent document or electronic purchase order system.

If an electronic purchasing system is used instead of signing as a hard-copy, text below must be copied into the electronic order form **starting from 'APPLICABLE FRAMEWORK CONTRACT' and up to, but not including, the Signature block.**

It is essential that if you, as the Buyer, add to or amend any aspect of any Call-Off Schedule, then **you must send the updated Schedule** with the Order Form to the Supplier.

Retain the highlighted Bronze Contract wording below only if this is applicable to this Call-Off Contract.]

APPLICABLE FRAMEWORK CONTRACT

This Order Form is for the provision of the Call-Off Deliverables and dated **[Insert]** date of issue].

It's issued under the Framework Contract with the reference number RM6116 for the provision of **Network Services.**

CALL-OFF LOT(S):

[Insert] the relevant lot numbers **or insert** Not applicable]

CALL-OFF INCORPORATED TERMS

The following documents are incorporated into this Call-Off Contract. Where numbers are missing we are not using those schedules. If the documents conflict, the following order of precedence applies:

1. This Order Form, including the Call-Off Special Terms and Call-Off Special Schedules.
2. Joint Schedule 1(Definitions and Interpretation) RM6116
3. Framework Special Terms [**Buyer guidance:** This will incorporate all of the Framework Special Terms into the Call-Off Contract. This will need to be amended to specify which are included if it is anticipated that some will be excluded. **Remove** this guidance too.]
4. Call-off schedule 17 (MOD Terms)
5. The following Schedules in equal order of precedence:

[Buyer guidance: delete any highlighted Schedules that you do not need for this Call-Off Contract. **Add** any additional Schedule needed, providing it is within scope of the framework agreement. Joint Schedule 7 and Call-Off Schedule 8 contain optional terms which can be switched on by including the wording in the list below. These optional terms are for use where the Call-Off Contract is a Bronze Contract only.

Remove any highlighting remaining before finalising this Order Form.
Remove this guidance too.]

- Joint Schedules for RM6116
 - Joint Schedule 2 (Variation Form)
 - Joint Schedule 3 (Insurance Requirements)
 - Joint Schedule 4 (Commercially Sensitive Information)
 - [Joint Schedule 6 (Key Subcontractors)]
 - [Joint Schedule 7 (Financial Difficulties)]
[including Annex 5 – Optional Terms for Bronze Contracts]
 - [Joint Schedule 8 (Guarantee)]
 - [Joint Schedule 9 (Minimum Standards of Reliability)]
 - Joint Schedule 10 (Rectification Plan)
 - Joint Schedule 11 (Processing Data)
 - [Joint Schedule 12 (Supply Chain Visibility)]
- Call-Off Schedules for RM6116
 - Call-Off Schedule 1 (Transparency Reports)
 - Call-Off Schedule 2 (Staff Transfer)
 - Call-Off Schedule 3 (Continuous Improvement)
 - [Call-Off Schedule 5 (Pricing Details)]
 - [Call-Off Schedule 6 (ICT Services)]
 - [Call-Off Schedule 7 (Key Supplier Staff)]

Framework Schedule 6 (Order Form Template and Call-Off Schedules)

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- [Call-Off Schedule 8 (Business Continuity and Disaster Recovery)]
[amended for a Bronze Contract as per paragraph 10 of Part A of
that Schedule]
 - [Call-Off Schedule 9 (Security)
]
 - [Call-Off Schedule 10 (Exit Management)]
 - [Call-Off Schedule 11 (Installation Works)]
 - [Call-Off Schedule 12 (Clustering)]
 - [Call-Off Schedule 13 (Implementation Plan and Testing)]
 - [Call-Off Schedule 14 (Service Levels)]
 - [Call-Off Schedule 15 (Call-Off Contract Management)]
 - [Call-Off Schedule 16 (Benchmarking)]
 - [Call-Off Schedule 18 (Background Checks)]
 - [Call-Off Schedule 19 (Scottish Law)]
 - [Call-Off Schedule 20 (Call-Off Specification)]
 - [Call-off Schedule 21 (Northern Ireland Law)]
 - [Call-off Schedule 22 (Lease Terms)]
 - [Call-Off Schedule 23 (HMRC Terms)
]
 - [Call-Off Schedule 24 (Supplier Furnished Terms)]
6. CCS Core Terms (version 3.0.11)
7. Joint Schedule 5 (Corporate Social Responsibility) RM6116
8. [Call-Off Schedule 4 (Call-Off Tender) as long as any parts of the Call-Off
Tender that offer a better commercial position for the Buyer (as decided by
the Buyer) take precedence over the documents above.]
9. Call-Off schedule 25 (Supplier Operational Terms)

No other Supplier terms are part of the Call-Off Contract. That includes any terms written on the back of, added to this Order Form, or presented at the time of delivery.

CALL-OFF SPECIAL TERMS

The following Special Terms are incorporated into this Call-Off Contract:

[Insert] terms to revise or supplement Core Terms, Joint Schedules, Call Off Schedules; or none]

[Special Term 1	]
[Special Term 2.	]
[Special Term 3.	]
[None]	

CALL-OFF START DATE: **[Inset]** Day Month Year]

CALL-OFF EXPIRY DATE: **[Inset]** Day Month Year]

CALL-OFF INITIAL PERIOD: **[Inset]** Years, Months]

Framework Schedule 6 (Order Form Template and Call-Off Schedules)

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CALL-OFF OPTIONAL EXTENSION PERIOD [Insert Years/ Months/ Not Applicable]

MINIMUM PERIOD OF NOTICE FOR WITHOUT REASON TERMINATION [Insert minimum period of notice]

CATALOGUE SERVICE OFFER REFERENCE [Insert Service Offer Reference]
[Buyer guidance: Applicable only when ordering from the Catalogue. Delete if not required and delete this guidance too].

CALL-OFF DELIVERABLES VIA DIRECT AWARD

[Buyer guidance: Applicable only when ordering from the Catalogue, delete if by Further Competition. Complete option A and insert the details from the Supplier's Service Offer, or, if the Deliverables are too complex for this form, use option B and Call-Off Schedule 20 instead. Delete the option that is not used. You must not include any Deliverables that are not included within the Suppliers' Service Offer.]

[Option A: [Name of Deliverable]][Quantity][Delivery date][Details]]

[Option B: See details in Call-Off Schedule 20 (Call-Off Specification)]

CALL-OFF DELIVERABLES VIA FURTHER COMPETITION

[Buyer guidance: Applicable when a Call-Off Contract is awarded in accordance with the Further Competition Procedure. Delete if by Direct Award. **Complete** option A or, if Deliverables are too complex for this form, **use** option B and Call-Off Schedule 20 instead. **Delete** the option that is not used.]

[Option A: [Name of Deliverable]][Quantity][Delivery date][Details]]

[Option B: See details in Call-Off Schedule 20 (Call-Off Specification)]

MAXIMUM LIABILITY

The limitation of liability for this Call-Off Contract is stated in Clause 11.2 of the Core Terms.

[Buyer guidance: you can change the cap on liability in Clause 11.2 where you have made an appropriate risk assessment and sought the necessary management approvals. Unlimited liability is not permitted]

The Estimated Year 1 Charges used to calculate liability in the first Contract Year is [Insert Estimated Charges in the first 12 months of the Contract. The Buyer must always provide a figure here]

CALL-OFF CHARGES

Framework Schedule 6 (Order Form Template and Call-Off Schedules)

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[Buyer guidance: Use option A or, if charging model is too complex to detail in this form or must be embedded, **use** option B and Call-Off Schedule 5 instead. **Delete** the option that is not used.]

[Option A: Insert the Charges for the Deliverables]

[Option B: See details in Call-Off Schedule 5 (Pricing Details)]

[Delete if by Direct Award or if not otherwise used: All changes to the Charges must use procedures that are equivalent to those in Paragraphs 4, 5 and 6 (if used) in Framework Schedule 3 (Framework Prices)]

The Charges will not be impacted by any change to the Framework Prices. The Charges can only be changed by agreement in writing between the Buyer and the Supplier because of:

- [Indexation]
- [Specific Change in Law]
- [Benchmarking using Call-Off Schedule 16 (Benchmarking)]

REIMBURSABLE EXPENSES

[Insert None or insert Recoverable as stated in the Framework Contract]

PAYMENT METHOD

[Insert payment method(s) and necessary details]

BUYER'S INVOICE ADDRESS:

[Insert name]

[Insert role]

[Insert email address]

[Insert address]

BUYER'S AUTHORISED REPRESENTATIVE

[Insert name]

[Insert role]

[Insert email address]

[Insert address]

BUYER'S ENVIRONMENTAL POLICY

[Insert details [Document name] [version] [date] [available online at:]

or insert: [Appended at Call-Off Schedule X]]

BUYER'S SECURITY POLICY

[Insert details [Document name] [version] [date] [available online at:]

or insert: [Appended at Call-Off Schedule X]]

SUPPLIER'S AUTHORISED REPRESENTATIVE

[Insert name]

[Insert role]

[Insert email address]

[Insert address]

SUPPLIER'S CONTRACT MANAGER

[Insert] name]

[Insert] role]

[Insert] email address]

[Insert] address]

PROGRESS REPORT FREQUENCY

[Insert report frequency]: On the first Working Day of each calendar month]

PROGRESS MEETING FREQUENCY

[Insert meeting frequency]: Quarterly on the first Working Day of each quarter]

KEY STAFF

Buyer guidance: Review Call-Off Schedule 7 (Key Supplier Staff)] **[Insert Not Applicable]** Or

[Insert] name]

[Insert] role]

[Insert] email address]

[Insert] address]

[Insert] contract details]

KEY SUBCONTRACTOR(S)

[Insert] name (registered name if registered)]

COMMERCIALLY SENSITIVE INFORMATION

[Insert] Not applicable **or insert** Supplier's Commercially Sensitive Information]

SERVICE CREDITS

[Insert] Not applicable]

[or insert] Service Credits will accrue in accordance with Call-Off Schedule 14 (Service Levels).

The Service Credit Cap is: **[Insert]** £value].

The Service Period is: **[Insert duration]:** one Month]

A Critical Service Level Failure is: **[Buyer to define]**

ADDITIONAL INSURANCES

[Insert] Not applicable

or insert details of Additional Insurances required in accordance with Joint Schedule 3 (Insurance Requirements)]

GUARANTEE

[Insert] Not applicable

or insert The Supplier must have a Call-Off Guarantor to guarantee their performance using the form in Joint Schedule 8 (Guarantee)

or insert There's a guarantee of the Supplier's performance provided for all Call-Off Contracts entered under the Framework Contract]

SOCIAL VALUE COMMITMENT

[Insert] Not applicable **or insert** The Supplier agrees, in providing the Deliverables and performing its obligations under the Call-Off Contract, that it will comply with the social value commitments in Call-Off Schedule 4 (Call-Off Tender)]

For and on behalf of the Supplier:		For and on behalf of the Buyer:	
Signature:		Signature:	
Name:		Name:	
Role:		Role:	
Date:		Date:	

[Buyer guidance: execution by seal / deed where required by the Buyer].

Framework Schedule 7 (Call-Off Award Procedure)

Part 1: Order Procedure

[Buyer guidance: Paragraph 3.1.6 is intended to allow for clarification of submitted tenders within the scope of Regulation 56(4) which does not extend to material changes to already submitted tenders or negotiation. Buyers need not seek clarifications but where they do it is suggested that clear records are kept and where it would not breach confidentiality obligations to do so interactions with one Supplier should be notified to all potential Suppliers in line with transparency principles. Buyers might also wish to consider re-running a Further Competition Procedure where it becomes apparent from submitted tenders and clarification questions that the Statement of Requirements has not resulted in Deliverables that are acceptable to the Buyer]

1. How a Call-Off Contract is awarded

1.1 If a potential Buyer decides to source Deliverables through this Contract then it will award its Deliverables in accordance with the procedure in this Schedule and the requirements of the Regulations.

1.2 If the potential Buyer can determine that:

1.2.1 its Deliverables can be met by the Suppliers' catalogues and description of the Deliverables as set out in Framework Schedule 1 (Specification) and Framework Schedule 2 (Framework Tender); and

1.2.2 all of the terms of the proposed Call-Off Contract are laid down in this Contract and do not require amendment or any supplementary terms and conditions;

then the Buyer may award a Call-Off Contract in accordance with the procedure set out in Paragraph 2 below.

1.3 If all of the terms of the proposed Call-Off Contract are not laid down in this Contract and the potential Buyer:

1.3.1 requires the Supplier to develop proposals or a solution in respect of such Deliverables; and/or

1.3.2 needs to amend or refine the terms of the Framework Contract to reflect its Deliverables to the extent permitted by and in accordance with the Regulations;

then the Buyer may award a Call-Off Contract in accordance with the Further Competition Procedure set out in Paragraph 3 below.

2. How a direct award works

2.1 Subject to Paragraph 1.2 above the Buyer awarding a Call-Off Contract under this Contract without holding a further competition shall:

- 2.1.1 develop a clear Statement of Requirements;
- 2.1.2 apply the direct award criteria to the catalogue and description of the Deliverables as set out in Framework Schedule 1 (Specification) for all Suppliers capable of meeting the Statement of Requirements in order to establish which Supplier provides the most economically advantageous solution; and
- 2.1.3 where the Statement of Requirements requires the Supplier to hold classified information, the Buyer may state a required Standard and apply the Direct Award Criteria only to the Catalogue of the Suppliers capable of meeting the required Standard and the Statement of Requirements;
- 2.1.4 on the basis set out above, award the Call-Off Contract with the successful Supplier in accordance with Paragraph 6 below.

3. How a further competition works

What the Buyer has to do

3.1 The Buyer awarding a Call-Off Contract under this Contract through a Further Competition Procedure shall:

- 3.1.1 develop a Statement of Requirements setting out its requirements for the Deliverables and identify the Suppliers capable of supplying them;
- 3.1.2 where the Statement of Requirements requires the Supplier to hold classified information, the Buyer may state a required Standard and identify the Suppliers capable of meeting the required Standard;
- 3.1.3 amend or refine the Deliverables to reflect its requirements by using the Order Form only to the extent permitted by and in accordance with the requirements of the Regulations;
- 3.1.4 invite tenders by conducting a Further Competition Procedure for its Deliverables in accordance with the Regulations and in particular:
 - (a) if an Electronic Reverse Auction (as defined in Paragraph 7 below) is to be held, the Buyer shall notify the Suppliers identified in accordance with Paragraph 3.1.1 and shall conduct the Further Competition Procedure in accordance with the procedures set out in Paragraph 3; or

- (b) if an Electronic Reverse Auction is not used, the Buyer shall:
 - (i) invite the Suppliers identified in accordance with Paragraph 3.1.1 to submit a tender in writing for each proposed Call-Off Contract to be awarded by giving written notice by email to the relevant Supplier Representative of each Supplier;
 - (ii) set a time limit for the receipt by it of the tenders which takes into account factors such as the complexity of the subject matter of the proposed Call-Off Contract and the time needed to submit tenders; and
 - (iii) keep each tender confidential until the time limit set out for the return of tenders has expired.
- 3.1.5 apply the further competition award criteria to the Suppliers' compliant tenders submitted through the Further Competition Procedure as the basis of its decision to award a Call-Off Contract for its Deliverables;
- 3.1.6 where the Buyer deems it appropriate to do so and in accordance with Regulation 56, request further clarification of a Call-Off Tender after its submission in order to resolve any minor errors or ambiguities or seek missing information from the Supplier;
- 3.1.7 on the basis set out above, award its Call-Off Contract to the successful Supplier in accordance with Paragraph 6. The Call-Off Contract shall:
 - (a) state the Deliverables;
 - (b) state the tender submitted by the successful Supplier;
 - (c) state the Charges payable for the Deliverables in accordance with the tender submitted by the successful Supplier; and
 - (d) incorporate the terms [of the Order Form and Contract] (as may be amended or refined by the Buyer in accordance with Paragraph 3.1.3. above) applicable to the Deliverables,
- 3.1.8 provide unsuccessful Suppliers with written feedback in relation to the reasons why their tenders were unsuccessful.

What the Supplier has to do

3.2 The Supplier shall in writing, by the time and date specified by the Buyer following an invitation to tender pursuant to Paragraph 3.1.3 above, provide CCS and the Buyer with either:

- 3.2.1 a statement to the effect that it does not wish to tender in relation to the Deliverables; or

- 3.2.2 the full details of its tender made in respect of the relevant Statement of Requirements. In the event that the Supplier submits such a tender, it should include, as a minimum:
- (a) an email response subject line to comprise unique reference number and Supplier name, so as to clearly identify the Supplier;
 - (b) a brief summary, in the email (followed by a confirmation letter), stating that the Supplier is bidding for the Statement of Requirements;
 - (c) a proposal covering the Deliverables;
 - (d) where requested by the Buyer, CVs of key staff – as a minimum any lead consultant, with others, as considered appropriate along with required staff levels (if necessary); and
 - (e) confirmation of discounts applicable to the Deliverables, as referenced in Framework Schedule 3 (Framework Prices) (if applicable).
- 3.2.3 The Supplier shall ensure that any prices submitted in relation to a Further Competition Procedure held pursuant to this Paragraph 3 shall be based on the charging structure and take into account any discount to which the Buyer may be entitled as set out in Framework Schedule 3 (Framework Prices).
- 3.2.4 The Supplier agrees that:
- (a) all tenders submitted by the Supplier in relation to a Further Competition Procedure held pursuant to this Paragraph 3 shall remain open for acceptance by the Buyer for ninety (90) Working Days (or such other period specified in the invitation to tender issued by the Buyer in accordance with the Call-Off Procedure); and
 - (b) all tenders submitted by the Supplier are made and will be made in good faith and that the Supplier has not fixed or adjusted and will not fix or adjust the price of the tender by or in accordance with any agreement or arrangement with any other person. The Supplier certifies that it has not and undertakes that it will not:
 - (i) communicate to any person other than the person inviting these tenders the amount or approximate amount of the tender, except where the disclosure, in confidence, of the approximate amount of the tender was necessary to obtain quotations required for the preparation of the tender; and
 - (ii) enter into any arrangement or agreement with any other person that he or the other person(s) shall refrain

from submitting a tender or as to the amount of any tenders to be submitted.

4. No requirement to award

4.1 Notwithstanding the fact that the Buyer has followed a procedure as set out above in Paragraph 2 or 3 (as applicable), the Supplier acknowledges and agrees that the Buyer shall be entitled at all times to decline to make an award for its Deliverables and that nothing in this Contract shall oblige the Buyer to award any Call-Off Contract.

5. Who is responsible for the award

5.1 The Supplier acknowledges that the Buyer is independently responsible for the conduct of its award of Call-Off Contracts under this Contract and that CCS is not responsible or accountable for and shall have no liability whatsoever, except where it is the Buyer, in relation to:

5.1.1 the conduct of Buyer in relation to this Contract; or

5.1.2 the performance or non-performance of any Call-Off Contracts between the Supplier and Buyer entered into pursuant to this Contract.

6. Awarding and creating a Call-Off Contract

6.1 Subject to Paragraphs 1 to 5 above and 7, a Buyer may award a Call-Off Contract with the Supplier by sending (including electronically) a signed order form substantially in the form (as may be amended or refined by the Buyer in accordance with Paragraph 3.1.3 above) of the Order Form Template set out in Framework Schedule 6 (Order Form Template and Call-Off Schedules).

6.2 The Parties agree that any document or communication (including any document or communication in the apparent form of a Call-Off Contract) which is not as described in this Paragraph 6 shall not constitute a Call-Off Contract under this Contract.

6.3 On receipt of an order form as described in Paragraph 6.1 from a Buyer the Supplier shall accept the Call-Off Contract by promptly signing and returning (including by electronic means) a copy of the order form to the Buyer concerned.

6.4 On receipt of the countersigned Order Form from the Supplier, the Buyer shall send (including by electronic means) a written notice of receipt to the Supplier within two (2) Working Days and the Call Off Contract shall be formed with effect from the Call Off Start Date stated in the Order Form.

7. **[Guidance:** Include this Paragraph if the buyer has the option of using a reverse auction at call-off.

How e-auctions work

7.1 The Buyer shall be entitled to include a reverse auction in the Further Competition Procedure in accordance with the rules laid down by the Buyer and the Regulations.

7.2 Where the Buyer wishes to undertake an electronic reverse auction, where Suppliers compete in real time by bidding as the auction unfolds ("**Electronic Reverse Auction**") then before undertaking it, the Buyer will make an initial full evaluation of all tenders received in response to its Statement of Requirements. The Buyer will then invite to the Electronic Reverse Auction only those tenders that are admissible in accordance with the Regulations. The invitation shall be accompanied by the outcome of the full initial evaluation of the relevant tenders.

7.3 The Buyer will inform the Suppliers of the specification for the Electronic Reverse Auction which shall include:

- (a) the information to be provided at auction, which must be expressed in figures or percentages of the specified quantifiable features;
- (b) the mathematical formula to be used to determine automatic ranking of bids on the basis of new prices and/or new values submitted;
- (c) any limits on the values which may be submitted;
- (d) a description of any information which will be made available to Suppliers in the course of the Electronic Reverse Auction, and when it will be made available to them;
- (e) the conditions under which Suppliers will be able to bid and, in particular, the minimum differences which will, where appropriate, be required when bidding;
- (f) relevant information concerning the electronic equipment used and the arrangements and technical specification for connection;
- (g) subject to Paragraph 7.5, the date and time of the start of the Electronic Reverse Auction; and
- (h) details of when and how the Electronic Reverse Auction will close.

7.4 The Electronic Reverse Auction may not start sooner than two (2) Working Days after the date on which the specification for the Electronic Reverse Auction has been issued.

7.5 Throughout each phase of the Electronic Reverse Auction the Buyer will communicate to all Suppliers sufficient information to enable them to ascertain their relative ranking.

7.6 The Supplier acknowledges and agrees that:

- (a) the Buyer and its officers, servants, agents, group companies, assignees and customers (including CCS) do not guarantee that its access to the Electronic Reverse Auction will be uninterrupted or error-free;

- (b) its access to the Electronic Reverse Auction may occasionally be restricted to allow for repairs or maintenance; and
- (c) it will comply with all such rules that may be imposed by the Buyer in relation to the operation of the Electronic Reverse Auction.

7.7 The Buyer will close the Electronic Reverse Auction on the basis of:

- (a) a date and time fixed in advance;
- (b) when no new prices or values meeting the minimum differences required pursuant to Paragraph 7.3 have been received within the prescribed elapsed time period; or

7.7.2 when all the phases have been completed.]

8. Awarding and creating an Exempt Call-off Contract

8.1 Paragraph 1 above shall not apply to an Exempt Buyer.

8.2 If a potential Exempt Buyer decides to source Deliverables through this Framework Contract, it will award an Exempt Call-off Contract for Deliverables in accordance with the procedure in this Schedule as modified by this Paragraph 8 and in accordance with any legal requirements applicable to that potential Exempt Buyer.

8.3 A potential Exempt Buyer may award an Exempt Call-off Contract under this Framework Contract without holding a further competition in accordance with Paragraph 2 above as modified by Paragraph 8.4 below or through a Further Competition Procedure in accordance with Paragraph 3 as modified by Paragraph 8.5 below.

8.4 Notwithstanding the procedure set out in Paragraph 2 above, if the potential Exempt Buyer can determine that:

8.4.1 its Deliverables can be met by the Supplier's catalogues and description of the Deliverables as set out in Framework Schedule 1 (Specification) and Framework Schedule 2 (Framework Tender); and

8.4.2 the Supplier will accept any required Exempt Procurement Amendments,

then the Exempt Buyer may award an Exempt Call-off Contract to that Supplier in accordance with Paragraph 6 above.

8.5 If the potential Exempt Buyer requires the Supplier to develop proposals or a solution in respect of Deliverables, then the potential Exempt Buyer may at its discretion use the procedure set out in Paragraph 3 above as modified by this Paragraph 8.5. In that case, references to "the Regulations" in Paragraph 3 above shall be read as references to "any legal requirements applicable to that potential Exempt Buyer", and the Exempt Buyer shall be permitted to modify the Further Competition